

COMMONWEALTH OF MASSACHUSETTS

WORCESTER, SS.

SUPERIOR COURT DEPARTMENT
C.A. NO.:

Lakeview Loan Servicing LLC,

Plaintiff,

v.

Jose Aquino,

Defendant,

And

**United States of America, Secretary of
Housing and Urban Development, their
successors and assigns,**

Defendant/Party in Interest.

COMPLAINT

Jurisdiction

The Superior Court has jurisdiction over this matter pursuant to M.G.L. Ch. 212 § 3, M.G.L. Ch. 212 § 4, M.G.L. Ch. 244 § 8, and M.G.L. Ch. 244 §11, et. seq. Plaintiff Lakeview Loan Servicing LLC brings this action to foreclose a mortgage as the mortgage loan is in default. Plaintiff seeks a conditional judgment in the amount of the total amount due under the mortgage loan. If such judgment is not paid within the statutory timeframe, Plaintiff requests that the Court order that Plaintiff may foreclose the mortgage following the procedures set forth in the statutory power of sale, subject to the Court's final approval. The property locus is 18 Brooks Road, Winchendon, MA 01475 ("the Property").

Parties

1. Plaintiff Lakeview Loan Servicing LLC, is a financial institution with a usual place of business at 4425 Ponce de Leon Blvd., Coral Gables, FL 33146.
2. Defendant, Jose Aquino, is an individual who, upon information and belief, resides at 18 Brooks Road, Winchendon, MA 01475.
3. Defendant/Party-in-Interest, The United States of America, Secretary of Housing and Urban Development, their successors and assigns (“HUD”), is a government agency which has addresses for service of process of:
 - a. The Associate General Counsel for Litigation Office of Litigation
U.S. Department of Housing and Urban Development
451 Seventh Street, S.W.
Washington, DC 20410
 - b. U.S. Department of HUD
Attn: Office of Regional Counsel
10 Causeway Street, 3rd Floor
Boston, MA 0222-1092

Facts

4. On September 20, 2019, Defendant Jose Aquino (“Aquino”) became owner of the Property, via Quit Claim Deed, which was recorded at the Worcester South District Registry of Deeds (the “Registry”) on September 20, 2019, in Book 61085, at Page 185 (the “Deed”). A true and accurate copy of the Quit Claim Deed is attached as **Exhibit A**.
5. On September 20, 2019, Defendant Aquino executed and delivered a promissory note to HarborOne Mortgage LLC, in the amount of \$248,613.00 (“Note”). A true and accurate copy of the Note is attached as **Exhibit B**.
6. As security for the Note, on September 20, 2019, Defendant Aquino granted and delivered a mortgage in the amount of \$248,613.00, containing a statutory power of sale, to Mortgage

Electronic Registration Systems, Inc. ("MERS"), acting solely as nominee for HarborOne Mortgage LLC, and its successors and assigns, which was recorded at the Registry on September 20, 2019, in Book 61085, at Page 188 ("Mortgage"). A true and accurate copy of the Mortgage is attached as **Exhibit C**.

7. On February 25, 2020, MERS assigned the Mortgage to Plaintiff, Lakeview Loan Servicing, LLC, which assignment was recorded at the Registry on February 26, 2020, in Book 61949, at Page 165. A true and accurate copy of Assignment is attached as **Exhibit D**.
8. On May 9, 2023, the parties entered into a Loan Modification Agreement, which was recorded in the Registry on June 5, 2023, in Book 69216, at Page 258. A true and accurate copy of the Loan Modification Agreement is attached as **Exhibit E**.
9. On June 21, 2024, the parties entered into another Loan Modification Agreement, which was recorded in the Registry on July 25, 2024, in Book 70806, at Page 92. A true and accurate copy of the Loan Modification Agreement is attached as **Exhibit F**.
10. On April 22, 2025, the parties entered into a final Loan Modification Agreement, which was recorded in the Registry on June 4, 2025 in Book 72077, at Page 80. A true and accurate copy of the Loan Modification Agreement is attached as **Exhibit G**.

The Mortgage is secured by the Property located in the Town of Winchendon, Massachusetts, and is more particularly described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH

ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

FOR TITLE REFERENCE SEE DEED RECORDED HERewith.

See **Exhibit C**.

11. Plaintiff Lakeview Loan Servicing LLC is the current holder of the Note and Mortgage.
12. On August 30, 2022, HUD recorded a Partial Claims Mortgage in the amount of \$52,955.47, as a lienholder to the Defendant, recorded in the Registry in Book 68141, at Page 173. A true and accurate copy of the HUD Junior Mortgage is attached as **Exhibit H**.
13. On May 25, 2023, HUD recorded a Partial Claims Mortgage in the amount of \$14,523.25, as a lienholder to the Defendant, recorded in the Registry in Book 69173, at Page 296. A true and accurate copy of the HUD Junior Mortgage is attached as **Exhibit I**.
14. On July 16, 2024, HUD recorded a Partial Claims Mortgage in the amount of \$6,425.87, as a lienholder to the Defendant, recorded in the Registry in Book 70761, at Page 44. A true and accurate copy of the HUD Junior Mortgage is attached as **Exhibit J**.
15. No person or entity other than the parties hereto appears of record in the Registry to have any interest in said Property.
16. As Defendant Aquino defaulted on the Mortgage Loan, Plaintiff, or its predecessor in interest, or authorized servicer of the Mortgage, or anyone holding under the Mortgage, or its attorneys, sent a 90 Day Right to Cure, pursuant to M. G. L. c. 244, s. 35A, and Notice of Right to Request a Modified Mortgage Loan, pursuant to M. G. L. c. 244, s. 35B, via certified and regular mail, dated August 7, 2025. A true and accurate copy of the Right to Cure and Notice of Right to Request a Modified Mortgage Loan is attached as **Exhibit K**.

17. As Defendant Aquino failed to pay the outstanding amount, Plaintiff, through its attorneys, accelerated the mortgage loan in a letter to the Defendant, dated December 1, 2025. A true and accurate copy of the Notice of Acceleration is attached as **Exhibit L**.

18. Plaintiff, or its predecessor in interest, or authorized servicer of the Mortgage, or anyone holding under the Mortgage, or its attorneys, was authorized to send Notices of Default and to accelerate the balance due in compliance with the notice and default provisions of the Mortgage.

COUNT I

19. Plaintiff realleges and reaffirms the allegations set forth in paragraphs 1-18 as if restated herein.

20. Defendant Aquino, as the present owner of the Property, is the owner of the equity of redemption of the Property.

21. Defendant Aquino is in default in the performance of the terms and conditions of the Mortgage.

22. Plaintiff is entitled to foreclose the Mortgage, in full or partial satisfaction of the Defendant borrowers' obligations in connection with the Note and or Mortgage pursuant to their terms and applicable law, under paragraph 24 of the Mortgage.

23. Plaintiff is entitled to foreclose the Mortgage by invoking the Statutory Power of Sale pursuant to paragraph 24 of the terms of the Mortgage.

24. The interests of all Defendants in and to the Property are subordinate and subject to the Mortgage.

25. Upon examination of the public records, there are no other parties with a mortgage, lien, encumbrance, or other equitable interest with respect to the Property.

26. There are no persons having any interest of ownership who are in the Military Service of the United States of America or otherwise entitled to the relief and benefits provided by the Act of Congress known as the Servicemembers Civil Relief Act, 50 U.S.C. §3901 et seq, as amended. A true and accurate copy of the Department of Defense Manpower Data Center Status Report is attached as **Exhibit M**.

WHEREFORE, Plaintiff prays that the following relief enter:

1. Order that Defendant borrower is in default of the terms and conditions of the Note or Mortgage;
2. Order that the notice of default provisions of the Mortgage were strictly complied with prior to commencement of this action;
3. Order that Defendant borrower is not in the Military Service of the United States of America or otherwise entitled to the relief and benefits provided by the Act of Congress known as the Servicemembers Civil Relief Act, 50 U.S.C. §3901 et seq, as amended;
4. Enter Conditional Judgment pursuant to M.G.L. Ch. 244 §5 in the total amount due under the Note and Mortgage;
5. If the Conditional Judgment is not paid within two (2) months, Order that
 - A. Plaintiff, its successors and/or assigns, may; without further order of Court, sell the Property at public auction by following the procedures for foreclosures under the statutory power of sale set forth in G.L. c. 244, § 14, and
 - B. If applicable and to the extent permitted by law, Plaintiff shall have the right to pursue any deficiency that may result from the proceeds of the foreclosure sale, by complying with G.L. c. 244, § 17B.
6. After filing of a Report of Sale, confirm the acts of Plaintiff done and performed under the authority of the Conditional Judgment by entering a Final Decree confirming the

- foreclosure sale pursuant to M.G.L. Ch. 244 §12; declare that the Borrowers' right of redemption is forever foreclosed, and that the title to the Property may be conveyed to the successful purchaser, free and clear of any right to redeem the mortgage and free and clear from any subordinate right, title or interest in the Property held by the Defendants/Interested Parties or any other parties with actual, constructive or record notice of this action subject to statutory rights of redemption (if any);
7. Order that any Defendants holding any liens or mortgages attached to the Property that fail to appear or file an answer in this action shall result in a waiver of any statutory or other applicable redemption period(s) held by those Defendants and/or related thereto;
 8. Order that, upon payment of all required fees, an attested copy of the Conditional Judgment and Final Decree shall be recorded at the Worcester South District Registry of Deeds; and
 9. Grant other such relief as this Honorable Court deems reasonable and just.

Plaintiff,
Lakeview Loan Servicing LLC,
By its attorney

/s/ Jonathan Rankin
Jonathan Rankin, Esq., BBO#661656
Orlans PC
PO Box 540540
Waltham MA 02454
(781) 790-7800
jrankin@orlans.com

Dated: December 1, 2025

EXHIBIT A

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number : 97409
Document Type : DEED
Recorded Date : September 20, 2019
Recorded Time : 11:34:13 AM

Recorded Book and Page : 61085 / 185
Number of Pages(including cover sheet) : 3
Receipt Number : 1172388
Recording Fee (including excise) : \$1,280.96

MASSACHUSETTS EXCISE TAX
Worcester District ROD #20 001
Date: 09/20/2019 11:34 AM
Ctrl# 201132 24357 Doc# 00097409
Fee: \$1,155.96 Cons: \$253,200.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 798-7717

PROPERTY ADDRESS: 18 Brooks Road, Winchendon, MA 01475

MASSACHUSETTS QUITCLAIM DEED

We, **Richard A. Maynard and Joyce M. Maynard, husband and wife**, of 50 Brooks Pond Road, Apt. 306, Leominster, MA 01453

For consideration paid and in full consideration of **TWO HUNDRED FIFTY THREE THOUSAND TWO HUNDRED AND 00/100 Dollars (\$253,200.00)**

Grant to Jose Aquino, Individually, now of 18 Brooks Road, Winchendon, MA 01475

with *QUITCLAIM COVENANTS*

A certain parcel of land, with the buildings thereon, on the southwesterly line of Brooks road in Winchendon, Worcester County, Massachusetts, known and numbered 18 rooks Road, being shown as Lot "4B" on a plan entitled; "Plan of Lots prepared for Timothy S. Halliday, Winchendon, MA, Scale 1 inch = 40 feet, October 8, 1998, Edmond J. Boucher, PLS, Jolly Rod, South Royalston, MA", which plan is recorded with Worcester District Registry of Deeds, Plan Book 735, Plan 67, to which plan reference is made for a more particular description of said lot.

Containing 3.2092 acres, according to said plan.

Meaning and intending and hereby convey the same premises conveyed by deed dated May 11, 2000 and recorded on May 12, 2000 with Worcester (Southern District) Registry of Deeds in Book 22582, Page 371.

[SIGNATURES ON THE FOLLOWING PAGE(S)]

Executed as a sealed instrument this 20th day of September 2019

Richard A. Maynard
Richard A. Maynard

Joyce M. Maynard
Joyce M. Maynard

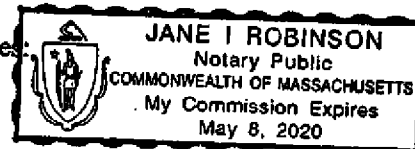
COMMONWEALTH OF MASSACHUSETTS

County of Worcester, ss

On this 20th day of September, 2019, before me, the undersigned, personally appeared Richard A. Maynard and Joyce M. Maynard, and proved to me through satisfactory evidence of identification, which was/were valid MA Driver's License, to be the person(s) whose name(s) are signed on the preceding or attached document, and acknowledged to me that they signed it voluntarily for its stated purpose and as their free act and deed.

Jane I. Robinson
Notary Public:

My Commission Expires:



ATTEST: WORC Kathryn A. Toomey, Register

EXHIBIT B

plus interest, to the order of the Lender. The Lender is **HarborOne Mortgage LLC, A Massachusetts Limited Liability Company.**

I will make all payments under this Note in the form of cash, check or money order.

I understand that the Lender may transfer this Note. The Lender or anyone who takes this Note by transfer and who is entitled to receive payments under this Note is called the "Note Holder."

2. INTEREST

Interest will be charged on unpaid principal until the full amount of Principal has been paid. I will pay interest at a yearly rate of **3.750 %**.

The interest rate required by this Section 2 is the rate I will pay both before and after any default described in Section 6(B) of this Note.

3. PAYMENTS

(A) Time and Place of Payments

I will pay principal and interest by making a payment every month.

I will make my monthly payment on the **1st** day of each month beginning on **November 1, 2019**.

I will make these payments every month until I have paid all of the principal and interest and any other charges described below that I may owe under this Note. Each monthly payment will be applied as of its scheduled due date and will be applied to interest and any other items in the order described in the Security Instrument before Principal. If, on **October 1, 2049**, I still owe amounts under this Note, I will pay those amounts in full on that date, which is called the "Maturity Date."

I will make my monthly payments at **1045 Elm Street, Suite 601
Manchester, NH 03101**

or at a different place if required by the Note Holder.

(B) Amount of Monthly Payments

My monthly payment will be in the amount of U.S. **\$1,151.37**.

4. BORROWER'S RIGHT TO PREPAY

I have the right to make payments of Principal at any time before they are due. A payment of Principal only is known as a "Prepayment." When I make a Prepayment, I will tell the Note Holder in writing that I am doing so. I may not designate a payment as a Prepayment if I have not made all the monthly payments due under the Note.

I may make a full Prepayment or partial Prepayments without paying a Prepayment charge. The Note Holder will use my Prepayments to reduce the amount of Principal that I owe under this Note. However, the Note Holder may apply my Prepayment to the accrued and unpaid interest on the Prepayment amount, before applying my Prepayment to reduce the Principal amount of the Note. If I make a partial Prepayment, there will be no changes in the due date or in the amount of my monthly payment unless the Note Holder agrees in writing to those changes.

5. LOAN CHARGES

If a law, which applies to this loan and which sets maximum loan charges, is finally interpreted so that the interest or other loan charges collected or to be collected in connection with this loan exceed the permitted limits, then: (a) any such loan charge shall be reduced by the amount necessary to reduce the charge to the permitted limit; and (b) any sums already collected from me which exceeded permitted limits will be refunded to me. The Note Holder may choose to make this refund by reducing the Principal I owe under this Note or by making a direct payment to me. If a refund reduces Principal, the reduction will be treated as a partial Prepayment.

6. BORROWER'S FAILURE TO PAY AS REQUIRED

(A) Late Charge for Overdue Payments

If the Note Holder has not received the full amount of any monthly payment by the end of **15** calendar days after the date it is due, I will pay a late charge to the Note Holder. The amount of the charge will be **3.000 %** of my overdue payment of principal and interest. I will pay this late charge promptly but only once on each late payment.

(B) Default

If I do not pay the full amount of each monthly payment on the date it is due, I will be in default.

(C) Notice of Default

If I am in default, the Note Holder may send me a written notice telling me that if I do not pay the overdue amount by a certain date, the Note Holder may require me to pay immediately the full amount of Principal which has not been paid and

of that different address.

8. OBLIGATIONS OF PERSONS UNDER THIS NOTE

If more than one person signs this Note, each person is fully and personally obligated to keep all of the promises made in this Note, including the promise to pay the full amount owed. Any person who is a guarantor, surety or endorser of this Note is also obligated to do these things. Any person who takes over these obligations, including the obligations of a guarantor, surety or endorser of this Note, is also obligated to keep all of the promises made in this Note. The Note Holder may enforce its rights under this Note against each person individually or against all of us together. This means that any one of us may be required to pay all of the amounts owed under this Note.

9. WAIVERS

I and any other person who has obligations under this Note waive the rights of Presentment and Notice of Dishonor. "Presentment" means the right to require the Note Holder to demand payment of amounts due. "Notice of Dishonor" means the right to require the Note Holder to give notice to other persons that amounts due have not been paid.

10. UNIFORM SECURED NOTE

This Note is a uniform instrument with limited variations in some jurisdictions. In addition to the protections given to the Note Holder under this Note, a Mortgage, Deed of Trust, or Security Deed (the "Security Instrument"), dated the same date as this Note, protects the Note Holder from possible losses which might result if I do not keep the promises which I make in this Note. That Security Instrument describes how and under what conditions I may be required to make immediate payment in full of all amounts I owe under this Note. Some of those conditions are described as follows:

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 14 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

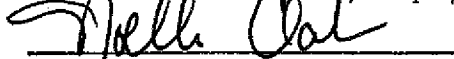
WITNESS THE HAND(S) AND SEAL(S) OF THE UNDERSIGNED:


JOSE AQUINO

(Seal)

Lender: HarborOne Mortgage LLC
NMLS ID: 2561
Loan Originator: John Michael Dahlinger
NMLS ID: 18978

Pay To The Order Of
Without Recourse
HarborOne Mortgage, LLC
A Massachusetts Limited Liability Company


Noelle Clark
AVP, Business Integration

[Sign Original Only]



EXHIBIT C

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 97410
Document Type	: MTG
Recorded Date	: September 20, 2019
Recorded Time	: 11:34:13 AM
Recorded Book and Page	: 61085 / 188
Number of Pages(including cover sheet)	: 13
Receipt Number	: 1172388
Recording Fee	: \$175.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 798-7717

LOAN # [REDACTED]

[Space Above This Line For Recording Data]

MORTGAGE

MIN: [REDACTED]

MERS PHONE #: 1-888-679-6377

DEFINITIONS

Words used in multiple sections of this document are defined below and other words are defined in Sections 3, 10, 12, 17, 19 and 21. Certain rules regarding the usage of words used in this document are also provided in Section 15.

(A) "Security Instrument" means this document, which is dated **September 20, 2019**, together with all Riders to this document.

(B) "Borrower" is **JOSE AQUINO, INDIVIDUALLY**.

Borrower is the mortgagor under this Security Instrument.

(C) "MERS" is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. **MERS is the mortgagee under this Security Instrument**. MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.

(D) "Lender" is **HarborOne Mortgage LLC**.

Lender is **A Massachusetts Limited Liability Company**,
under the laws of **Massachusetts**.

organized and existing

Lender's address is **1045 Elm Street, Suite 601, Manchester, NH 03101**.

(D-1) "Mortgage Broker" is **NO MORTGAGE BROKER**

MASSACHUSETTS—Single Family—1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/16)
Modified for FHA by Ellie Mae, Inc. rev 02/17
Ellie Mae, Inc.

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Initials: **JA**
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09/19/2019 11:09 AM PST

18 Brooks Road, Weymouth, MA

and Mortgage Loan Originator's license number is 18978

(E) "Note" means the promissory note signed by Borrower and dated September 20, 2019.

The Note states that Borrower owes Lender **TWO HUNDRED FORTY EIGHT THOUSAND SIX HUNDRED THIRTEEN AND NO/100** ***** Dollars (U.S. \$248,613.00) plus interest. Borrower has promised to pay this debt in regular Periodic Payments and to pay the debt in full not later than October 1, 2049.

(F) "Property" means the property that is described below under the heading "Transfer of Rights in the Property."

(G) "Loan" means the debt evidenced by the Note, plus interest, late charges due under the Note, and all sums due under this Security Instrument, plus interest.

(H) "Riders" means all Riders to this Security Instrument that are executed by Borrower. The following Riders are to be executed by Borrower [check box as applicable]:

- ☐ Adjustable Rate Rider ☐ Condominium Rider ☐ Planned Unit Development Rider
☐ Other(s) [specify]

(I) "Applicable Law" means all controlling applicable federal, state and local statutes, regulations, ordinances and administrative rules and orders (that have the effect of law) as well as all applicable final, non-appealable judicial opinions.

(J) "Community Association Dues, Fees, and Assessments" means all dues, fees, assessments and other charges that are imposed on Borrower or the Property by a condominium association, homeowners association or similar organization.

(K) "Electronic Funds Transfer" means any transfer of funds, other than a transaction originated by check, draft, or similar paper instrument, which is initiated through an electronic terminal, telephonic instrument, computer, or magnetic tape so as to order, instruct, or authorize a financial institution to debit or credit an account. Such term includes, but is not limited to, point-of-sale transfers, automated teller machine transactions, transfers initiated by telephone, wire transfers, and automated clearinghouse transfers.

(L) "Escrow Items" means those items that are described in Section 3.

(M) "Miscellaneous Proceeds" means any compensation, settlement, award of damages, or proceeds paid by any third party (other than insurance proceeds paid under the coverages described in Section 5) for: (i) damage to, or destruction of, the Property; (ii) condemnation or other taking of all or any part of the Property; (iii) conveyance in lieu of condemnation; or (iv) misrepresentations of, or omissions as to, the value and/or condition of the Property.

(N) "Mortgage Insurance" means insurance protecting Lender against the nonpayment of, or default on, the Loan.

(O) "Periodic Payment" means the regularly scheduled amount due for (i) principal and interest under the Note, plus (ii) any amounts under Section 3 of this Security Instrument.

(P) "RESPA" means the Real Estate Settlement Procedures Act (12 U.S.C. §2601 et seq.) and its implementing regulation, Regulation X (12 C.F.R. Part 1024), as they might be amended from time to time, or any additional or successor legislation or regulation that governs the same subject matter. As used in this Security Instrument, "RESPA" refers to all requirements and restrictions that are imposed in regard to a "federally related mortgage loan" even if the Loan does not qualify as a "federally related mortgage loan" under RESPA.

(Q) "Secretary" means the Secretary of the United States Department of Housing and Urban Development or his designee.

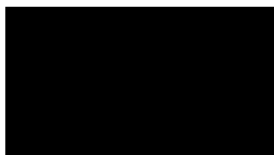
(R) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements

MASSACHUSETTS—Single Family—1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/16)
Modified for FHA by Ellie Mae, Inc. rev 02/17
Ellie Mae, Inc.

Initials: JA
MAEFHA15DE 0217
MAEDEED (CLS)
09/19/2019 11:09 AM PST



which currently has the address of **18 Brooks Road, Winchendon,**

Massachusetts 01475

[Zip Code]

("Property Address"):

[Street] [City]

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's successors and assigns) has the right to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing and canceling this Security Instrument.

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to mortgage, grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal, Interest, Escrow Items, and Late Charges. Borrower shall pay when due the principal of, and interest on, the debt evidenced by the Note and late charges due under the Note. Borrower shall also pay funds for Escrow Items pursuant to Section 3. Payments due under the Note and this Security Instrument shall be made in U.S. currency. However, if any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality, or entity; or (d) Electronic Funds Transfer. Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in Section 14. Lender may return any payment or partial payment if the payment or partial payments are insufficient to bring the Loan current. Lender may accept any payment or partial payment insufficient to bring the Loan current, without waiver of any rights hereunder or prejudice to its rights to refuse such payment or partial payments in the future, but Lender is not obligated to apply such payments at the time such payments are accepted. If each Periodic Payment is applied as of its scheduled due date, then Lender need not pay interest on unapplied funds. Lender may hold such unapplied funds until Borrower makes payment to bring the Loan current. If Borrower does not do so within a reasonable period of time, Lender shall either apply such funds or return them to Borrower. If not applied earlier, such funds will be applied to the outstanding principal balance under the Note immediately prior to foreclosure. No

MASSACHUSETTS—Single Family—1/01 (based on Fannie Mae/Freddie Mac Form 3022 rev.10/16)
Modified for FHA by Ellie Mae, Inc. rev 02/17
Ellie Mae, Inc.

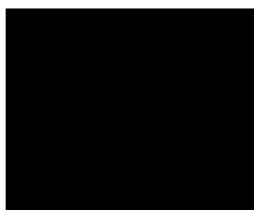
Page 3 of 11

Initials: **JA**

MAEFHA15DE 0217

MAEDEED (CLS)

09/19/2019 11:09 AM PST



Fifth, to late charges due under the Note.

Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note shall not extend or postpone the due date, or change the amount, of the Periodic Payments.

3. **Funds for Escrow Items.** Borrower shall pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum (the "Funds") to provide for payment of amounts due for: (a) taxes and assessments and other items which can attain priority over this Security Instrument as a lien or encumbrance on the Property; (b) leasehold payments or ground rents on the Property, if any; (c) premiums for any and all insurance required by Lender under Section 5; and (d) Mortgage Insurance premiums to be paid by Lender to the Secretary or the monthly charge by the Secretary instead of the monthly Mortgage Insurance premiums. These items are called "Escrow Items." At origination or at any time during the term of the Loan, Lender may require that Community Association Dues, Fees, and Assessments, if any, be escrowed by Borrower, and such dues, fees and assessments shall be an Escrow Item. Borrower shall promptly furnish to Lender all notices of amounts to be paid under this Section. Borrower shall pay Lender the Funds for Escrow Items unless Lender waives Borrower's obligation to pay the Funds for any or all Escrow Items. Lender may waive Borrower's obligation to pay to Lender Funds for any or all Escrow Items at any time. Any such waiver may only be in writing. In the event of such waiver, Borrower shall pay directly, when and where payable, the amounts due for any Escrow Items for which payment of Funds has been waived by Lender and, if Lender requires, shall furnish to Lender receipts evidencing such payment within such time period as Lender may require. Borrower's obligation to make such payments and to provide receipts shall for all purposes be deemed to be a covenant and agreement contained in this Security Instrument, as the phrase "covenant and agreement" is used in Section 9. If Borrower is obligated to pay Escrow Items directly, pursuant to a waiver, and Borrower fails to pay the amount due for an Escrow Item, Lender may exercise its rights under Section 9 and pay such amount and Borrower shall then be obligated under Section 9 to repay to Lender any such amount. Lender may revoke the waiver as to any or all Escrow Items at any time by a notice given in accordance with Section 14 and, upon such revocation, Borrower shall pay to Lender all Funds, and in such amounts, that are then required under this Section 3.

Lender may, at any time, collect and hold Funds in an amount (a) sufficient to permit Lender to apply the Funds at the time specified under RESPA, and (b) not to exceed the maximum amount a lender can require under RESPA. Lender shall estimate the amount of Funds due on the basis of current data and reasonable estimates of expenditures of future Escrow Items or otherwise in accordance with Applicable Law.

The Funds shall be held in an institution whose deposits are insured by a federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender shall apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender shall not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless an agreement is made in writing or Applicable Law requires interest to be paid on the Funds, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender can agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

If there is a surplus of Funds held in escrow, as defined under RESPA, Lender shall account to Borrower for the excess funds in accordance with RESPA. If there is a shortage of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the shortage in accordance with RESPA, but in no more than 12 monthly payments. If there is a deficiency of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the deficiency in accordance with RESPA, but in no more than 12 monthly payments.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender.

4. **Charges; Liens.** Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments

notice identifying the lien. Within 10 days of the date on which that notice is given, Borrower shall satisfy the lien or take one or more of the actions set forth above in this Section 4.

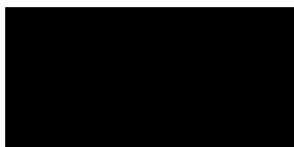
5. **Property Insurance.** Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes and floods, for which Lender requires insurance. This insurance shall be maintained in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan. The insurance carrier providing the insurance shall be chosen by Borrower subject to Lender's right to disapprove Borrower's choice, which right shall not be exercised unreasonably. Lender may require Borrower to pay, in connection with this Loan, either: (a) a one-time charge for flood zone determination, certification and tracking services; or (b) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur which reasonably might affect such determination or certification. Borrower shall also be responsible for the payment of any fees imposed by the Federal Emergency Management Agency in connection with the review of any flood zone determination resulting from an objection by Borrower.

If Borrower fails to maintain any of the coverages described above, Lender may obtain insurance coverage, at Lender's option and Borrower's expense. Lender is under no obligation to purchase any particular type or amount of coverage. Therefore, such coverage shall cover Lender, but might or might not protect Borrower, Borrower's equity in the Property, or the contents of the Property, against any risk, hazard or liability and might provide greater or lesser coverage than was previously in effect. Borrower acknowledges that the cost of the insurance coverage so obtained might significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender under this Section 5 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

All insurance policies required by Lender and renewals of such policies shall be subject to Lender's right to disapprove such policies, shall include a standard mortgage clause, and shall name Lender as mortgagee and/or as an additional loss payee. Lender shall have the right to hold the policies and renewal certificates. If Lender requires, Borrower shall promptly give to Lender all receipts of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy shall include a standard mortgage clause and shall name Lender as mortgagee and/or as an additional loss payee.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Unless Lender and Borrower otherwise agree in writing, any insurance proceeds, whether or not the underlying insurance was required by Lender, shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such insurance proceeds, Lender shall not be required to pay Borrower any interest or earnings on such proceeds. Fees for public adjusters, or other third parties, retained by Borrower shall not be paid out of the insurance proceeds and shall be the sole obligation of Borrower. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds shall be applied in the order provided for in Section 2.

If Borrower abandons the Property, Lender may file, negotiate and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 24 or otherwise, Borrower hereby assigns to Lender (a) Borrower's rights to any insurance



destruction, maintenance and Protection of the Property; inspections. Borrower shall not destroy, damage or impair the Property, allow the Property to deteriorate or commit waste on the Property. Borrower shall maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless it is determined pursuant to Section 5 that repair or restoration is not economically feasible, Borrower shall promptly repair the Property if damaged to avoid further deterioration or damage. If insurance or condemnation proceeds are paid in connection with damage to the Property, Borrower shall be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower is not relieved of Borrower's obligation for the completion of such repair or restoration.

If condemnation proceeds are paid in connection with the taking of the property, Lender shall apply such proceeds to the reduction of the indebtedness under the Note and this Security Instrument, first to any delinquent amounts, and then to payment of principal. Any application of the proceeds to the principal shall not extend or postpone the due date of the monthly payments or change the amount of such payments.

Lender or its agent may make reasonable entries upon and inspections of the Property. If it has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender shall give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower shall be in default if, during the Loan application process, Borrower or any persons or entities acting at the direction of Borrower or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan. Material representations include, but are not limited to, representations concerning Borrower's occupancy of the Property as Borrower's principal residence.

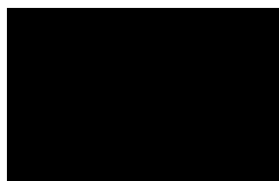
9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument. If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys' fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, entering the Property to make repairs, change locks, replace or board up doors and windows, drain water from pipes, eliminate building or other code violations or dangerous conditions, and have utilities turned on or off. Although Lender may take action under this Section 9, Lender does not have to do so and is not under any duty or obligation to do so. It is agreed that Lender incurs no liability for not taking any or all actions authorized under this Section 9.

Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. Borrower shall not surrender the leasehold estate and interests herein conveyed or terminate or cancel the ground lease. Borrower shall not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

10. Assignment of Miscellaneous Proceeds; Forfeiture. All Miscellaneous Proceeds are hereby assigned to and shall be paid to Lender.

If the Property is damaged, such Miscellaneous Proceeds shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened.



shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the sums secured by this Security Instrument shall be reduced by the amount of the Miscellaneous Proceeds multiplied by the following fraction: (a) the total amount of the sums secured immediately before the partial taking, destruction, or loss in value divided by (b) the fair market value of the Property immediately before the partial taking, destruction, or loss in value. Any balance shall be paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is less than the amount of the sums secured immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument whether or not the sums are then due.

If the Property is abandoned by Borrower, or if, after notice by Lender to Borrower that the Opposing Party (as defined in the next sentence) offers to make an award to settle a claim for damages, Borrower fails to respond to Lender within 30 days after the date the notice is given, Lender is authorized to collect and apply the Miscellaneous Proceeds either to restoration or repair of the Property or to the sums secured by this Security Instrument, whether or not then due. "Opposing Party" means the third party that owes Borrower Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to Miscellaneous Proceeds.

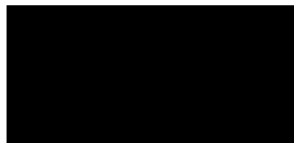
Borrower shall be in default if any action or proceeding, whether civil or criminal, is begun that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a default and, if acceleration has occurred, reinstate as provided in Section 18, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. The proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property are hereby assigned and shall be paid to Lender.

All Miscellaneous Proceeds that are not applied to restoration or repair of the Property shall be applied in the order provided for in Section 2.

11. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Security Instrument granted by Lender to Borrower or any Successor in Interest of Borrower shall not operate to release the liability of Borrower or any Successors in Interest of Borrower. Lender shall not be required to commence proceedings against any Successor in Interest of Borrower or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities or Successors in Interest of Borrower or in amounts less than the amount then due, shall not be a waiver of or preclude the exercise of any right or remedy.

12. Joint and Several Liability; Co-signers; Successors and Assigns Bound. Borrower covenants and agrees that Borrower's obligations and liability shall be joint and several. However, any Borrower who co-signs this Security Instrument but does not execute the Note (a "co-signer"): (a) is co-signing this Security Instrument only to mortgage, grant and convey the co-signer's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower can agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without the co-signer's consent.

Subject to the provisions of Section 17, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, shall obtain all of Borrower's rights and benefits under this Security Instrument. Borrower shall not be released from



the charge to the permitted limit; and (b) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment with no changes in the due date or in the monthly payment amount unless the Note holder agrees in writing to those changes. Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

14. Notices. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing. Any notice to Borrower in connection with this Security Instrument shall be deemed to have been given to Borrower when mailed by first class mail or when actually delivered to Borrower's notice address if sent by other means. Notice to any one Borrower shall constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. The notice address shall be the Property Address unless Borrower has designated a substitute notice address by notice to Lender. Borrower shall promptly notify Lender of Borrower's change of address. If Lender specifies a procedure for reporting Borrower's change of address, then Borrower shall only report a change of address through that specified procedure. There may be only one designated notice address under this Security Instrument at any one time. Any notice to Lender shall be given by delivering it or by mailing it by first class mail to Lender's address stated herein unless Lender has designated another address by notice to Borrower. Any notice in connection with this Security Instrument shall not be deemed to have been given to Lender until actually received by Lender. If any notice required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

15. Governing Law; Severability; Rules of Construction. This Security Instrument shall be governed by federal law and the law of the jurisdiction in which the Property is located. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence shall not be construed as a prohibition against agreement by contract. In the event that any provision or clause of this Security Instrument or the Note conflicts with Applicable Law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision.

As used in this Security Instrument: (a) words of the masculine gender shall mean and include corresponding neuter words or words of the feminine gender; (b) words in the singular shall mean and include the plural and vice versa; and (c) the word "may" gives sole discretion without any obligation to take any action.

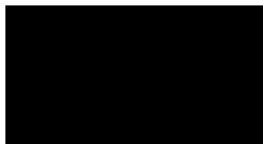
16. Borrower's Copy. Borrower shall be given one copy of the Note and of this Security Instrument.

17. Transfer of the Property or a Beneficial Interest in Borrower. As used in this Section 17, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract or escrow agreement, the intent of which is the transfer of title by Borrower at a future date to a purchaser.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 14 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

18. Borrower's Right to Reinstate After Acceleration. If Borrower meets certain conditions, Borrower shall have the right to reinstatement of a mortgage. Those conditions are that Borrower: (a) pays Lender all sums which then would be due under this Security Instrument and the Note as if no acceleration had occurred; (b) cures any default of any other covenants or agreements; (c) pays all expenses incurred in enforcing this Security Instrument, including, but not limited to, reasonable attorneys' fees, property inspection and valuation fees, and other fees incurred for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument; and (d) takes such action as Lender may reason-



had occurred. However, this right to reinstate shall not apply in the case of acceleration under Section 17.

19. Sale of Note; Change of Loan Servicer; Notice of Grievance. The Note or a partial interest in the Note (together with this Security Instrument) can be sold one or more times without prior notice to Borrower. A sale might result in a change in the entity (known as the "Loan Servicer") that collects Periodic Payments due under the Note and this Security Instrument and performs other mortgage loan servicing obligations under the Note, this Security Instrument, and Applicable Law. There also might be one or more changes of the Loan Servicer unrelated to a sale of the Note. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made and any other information RESPA requires in connection with a notice of transfer of servicing. If the Note is sold and thereafter the Loan is serviced by a Loan Servicer other than the purchaser of the Note, the mortgage loan servicing obligations to Borrower will remain with the Loan Servicer or be transferred to a successor Loan Servicer and are not assumed by the Note purchaser unless otherwise provided by the Note purchaser.

20. Borrower Not Third-Party Beneficiary to Contract of Insurance. Mortgage Insurance reimburses Lender (or any entity that purchases the Note) for certain losses it may incur if Borrower does not repay the Loan as agreed. Borrower acknowledges and agrees that the Borrower is not a third party beneficiary to the contract of insurance between the Secretary and Lender, nor is Borrower entitled to enforce any agreement between Lender and the Secretary, unless explicitly authorized to do so by Applicable Law.

21. Hazardous Substances. As used in this Section 21: (a) "Hazardous Substances" are those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials; (b) "Environmental Law" means federal laws and laws of the jurisdiction where the Property is located that relate to health, safety or environmental protection; (c) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law; and (d) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

Borrower shall not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property (a) that is in violation of any Environmental Law, (b) which creates an Environmental Condition, or (c) which, due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects the value of the Property. The preceding two sentences shall not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

Borrower shall promptly give Lender written notice of (a) any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge, (b) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release or threat of release of any Hazardous Substance, and (c) any condition caused by the presence, use or release of a Hazardous Substance which adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority, or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law. Nothing herein shall create any obligation on Lender for an Environmental Cleanup.

22. Grounds for Acceleration of Debt.

(a) **Default.** Lender may, except as limited by regulations issued by the Secretary, in the case of payment defaults, require immediate payment in full of all sums secured by this Security Instrument if:

- (i) Borrower defaults by failing to pay in full any monthly payment required by this Security Instrument prior to or on the due date of the next monthly payment, or
- (ii) Borrower defaults by failing, for a period of thirty days, to perform any other obligations contained in this Security Instrument.

(b) **Sale Without Credit Approval.** Lender shall, if permitted by applicable law (including Section 341(d) of the Garn-St. Germain Depository Institutions Act of 1982, 12 U.S.C. 1701j-3(d)) and with

will limit Lender's rights, in the case of payment defaults, to require immediate payment in full and foreclose if not paid. This Security Instrument does not authorize acceleration or foreclosure if not permitted by regulations of the Secretary.

(e) **Mortgage Not Insured.** Borrower agrees that if this Security Instrument and the Note are not determined to be eligible for insurance under the National Housing Act within 60 days from the date hereof, Lender may, at its option, require immediate payment in full of all sums secured by this Security Instrument. A written statement of any authorized agent of the Secretary dated subsequent to 60 days from the date hereof, declining to insure this Security Instrument and the Note, shall be deemed conclusive proof of such ineligibility. Notwithstanding the foregoing, this option may not be exercised by Lender when the unavailability of insurance is solely due to Lender's failure to remit a mortgage insurance premium to the Secretary.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

23. Assignment of Rents. Borrower unconditionally assigns and transfers to Lender all the rents and revenues of the Property. Borrower authorizes Lender or Lender's agents to collect the rents and revenues and hereby directs each tenant of the Property to pay the rents to Lender or Lender's agents. However, prior to Lender's notice to Borrower of Borrower's breach of any covenant or agreement in the Security Instrument, Borrower shall collect and receive all rents and revenues of the Property as trustee for the benefit of Lender and Borrower. This assignment of rents constitutes an absolute assignment and not an assignment for additional security only.

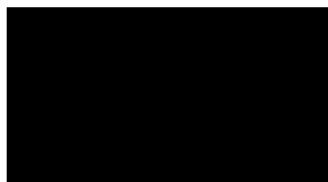
If Lender gives notice of breach to Borrower: (a) all rents received by Borrower shall be held by Borrower as trustee for benefit of Lender only, to be applied to the sums secured by the Security Instrument; (b) Lender shall be entitled to collect and receive all of the rents of the Property; and (c) each tenant of the Property shall pay all rents due and unpaid to Lender or Lender's agent on Lender's written demand to the tenant.

Borrower has not executed any prior assignment of the rents and has not and will not perform any act that would prevent Lender from exercising its rights under this Section 23.

Lender shall not be required to enter upon, take control of or maintain the Property before or after giving notice of breach to Borrower. However, Lender or a judicially appointed receiver may do so at any time there is a breach. Any application of rents shall not cure or waive any default or invalidate any other right or remedy of Lender. This assignment of rents of the Property shall terminate when the debt secured by the Security Instrument is paid in full.

24. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section 17 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the STATUTORY POWER OF SALE and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 24, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the STATUTORY POWER OF SALE, Lender shall mail a copy of a notice of sale to Borrower, and to other persons prescribed by Applicable Law, in the manner provided by Applicable Law. Lender shall publish the notice of sale, and the Property shall be sold in the manner prescribed by Applicable Law. Lender or its designee may purchase the Property at any sale. The proceeds of the sale shall be applied in the following order: (a) to all expenses of the sale, including, but not limited to, reasonable attorneys' fees; (b) to all sums secured by this Security Instrument; and (c) any excess to the person or persons legally entitled to it.



acquires an estate of homestead in the Property, Borrower heretofore has acquired or hereafter by Applicable Law, that such homestead estate is subordinated in all respects to this Security Instrument and the amount due under the Note and to all renewals, extensions and modifications of this Security Instrument or the Note, and that said homestead estate is subject to all of the rights of Lender under this Security Instrument and the Note and all renewals, extensions and modifications of this Security Instrument and the Note, and is subordinate to the lien evidenced by this Security Instrument, and all renewals, extensions and modifications of this Security Instrument. Borrower waives and relinquishes all rights of curtesy and dower in the Property.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider executed by Borrower and recorded with it.

JOSE AQUINO

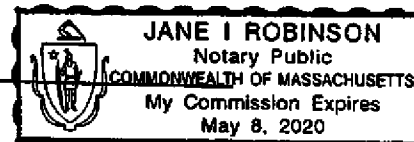
09/20/2019 (Seal)
DATE

Commonwealth of MA
County of Worcesters

On this 20th day of Sept, 2019, before me, the undersigned notary public, JOSE AQUINO personally appeared, proved to me through satisfactory evidence of identification, which were valid MA Drivers to be the person whose name is signed on the preceding or attached document, and acknowledged to me that (he) (she) signed it voluntarily, as his/her/their free act and deed, for its stated purpose.

Jane I Robinson
Notary signature

My commission expires



Lender: HarborOne Mortgage LLC
NMLS ID: 2561
Loan Originator: John Michael Dahlinger
NMLS ID: 18978



shown as Lot "4B" on a plan entitled; "Plan of Lots prepared for Timothy S. Halliday,
Winchendon, MA, Scale 1 inch = 40 feet, October 8, 1998, Edmond J. Boucher, PLS, Jolly Rod,
South Royalston, MA", which plan is recorded with Worcester District Registry of Deeds, Plan
Book 735, Plan 67, to which plan reference is made for a more particular description of said lot.

For title reference see deed to be recorded herewith.

ATTEST: WORC Kathryn A. Toomey, Register

JA

EXHIBIT D

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 20022
Document Type	: ASM
Recorded Date	: February 26, 2020
Recorded Time	: 01:08:21 PM
Recorded Book and Page	: 61949 / 165
Number of Pages(including cover sheet)	: 2
Receipt Number	: 1208567
Recording Fee	: \$105.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 798-7717

MASSACHUSETTS
COUNTY OF WORCESTER (SOUTH) (REC)
LOAN NO.: 440615032

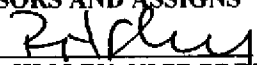
**WHEN RECORDED MAIL TO: FIRST AMERICAN MORTGAGE
SOLUTIONS
1795 INTERNATIONAL WAY
IDAHO FALLS, ID 83402
PH. 208-528-9895**

ASSIGNMENT OF REAL ESTATE MORTGAGE

FOR VALUE RECEIVED, receipt of which is hereby acknowledged, **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS")**, AS MORTGAGEE, AS NOMINEE FOR **HARBORONE MORTGAGE LLC**, ITS SUCCESSORS AND ASSIGNS, located at **P.O. BOX 2026, FLINT, MICHIGAN 48501-2026**, Assignor, without representation, recourse or warranty, express or implied, does hereby assign, transfer, set over, grant, and convey unto **LAKEVIEW LOAN SERVICING, LLC**, located at **4425 PONCE DE LEON BLVD, MS 5-251, CORAL GABLES, FL 33146**, Assignee, its successors and assigns forever, that certain Mortgage dated **SEPTEMBER 20, 2019**, executed by **JOSE AQUINO, INDIVIDUALLY**, Mortgagor, to **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS")**, AS MORTGAGEE, AS NOMINEE FOR **HARBORONE MORTGAGE LLC**, ITS SUCCESSORS AND ASSIGNS, Original Mortgagee, and recorded on **SEPTEMBER 20, 2019** in Mortgage Book **61085** at Page **188** as Document No. **97410** in the Office of the Register of Deeds for the County of **WORCESTER (SOUTH) (REC)**, State of **MASSACHUSETTS**.

Property Address: **18 BROOKS ROAD, WINCHENDON, MA 01475**
TOGETHER with all rights accrued or to accrue under said Mortgage.

IN WITNESS WHEREOF, the undersigned has caused this Instrument to be executed on **FEBRUARY 25, 2020**.
MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS"), AS MORTGAGEE, AS
NOMINEE FOR **HARBORONE MORTGAGE LLC**, ITS SUCCESSORS AND ASSIGNS


REBECCA HIGLEY, VICE PRESIDENT

STATE OF **IDAHO** COUNTY OF **BONNEVILLE**) ss.

On **FEBRUARY 25, 2020**, before me, **ADDISON RICE**, personally appeared **REBECCA HIGLEY** known to me to be the **VICE PRESIDENT** of **MORTGAGE ELECTRONIC REGISTRATION SYSTEMS, INC. ("MERS")**, AS MORTGAGEE, AS NOMINEE FOR **HARBORONE MORTGAGE LLC**, ITS SUCCESSORS AND ASSIGNS the corporation that executed the instrument or the person who executed the instrument on behalf of said corporation, and acknowledged to me that such corporation executed the same.


ADDISON RICE (COMMISSION EXP. 06/15/2024)
NOTARY PUBLIC

ADDISON RICE
Notary Public - State of Idaho
Commission Number 20181118
My Commission Expires Jun 15, 2024

EXHIBIT E

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 43571
Document Type	: MOD
Recorded Date	: June 05, 2023
Recorded Time	: 02:20:52 PM
Recorded Book and Page	: 69216 / 258
Number of Pages(including cover sheet)	: 8
Receipt Number	: 1517117
Recording Fee	: \$105.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 368-7000

This Document Prepared By:
EDI DONLIC
FLAGSTAR BANK, N.A.
8800 BAYMEADOWS WAY WEST, SUITE 400
JACKSONVILLE, FL 32256
800-393-4887

When Recorded Mail To:
FIRST AMERICAN TITLE
DTO REC., MAIL CODE: 4002
4795 REGENT BLVD
IRVING, TX 75063

Source of Title: INSTRUMENT NO. 97409 BOOK 61085, AT PAGE(S) 185
Tax/Parcel #: 4 0 176

_____[Space Above This Line for Recording Data]_____
Original Principal Amount: \$248,613.00 **FHA\VA Case No.:** 
Unpaid Principal Amount: \$234,786.31 
New Principal Amount: \$234,786.31 **Loan No:** 
New Money (Cap): \$0.00

Property Address: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

LOAN MODIFICATION AGREEMENT (MORTGAGE)



This Loan Modification Agreement ("Agreement"), made this **9TH** day of **MAY, 2023**, between **JOSE AQUINO, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475** and **LAKEVIEW LOAN SERVICING, LLC, BY FLAGSTAR BANK, N.A., ATTORNEY IN FACT UNDER LIMITED POA**

("Lender"), whose address is **8800 BAYMEADOWS WAY WEST, SUITE 400, JACKSONVILLE, FL 32256**, amends and supplements (1) the Mortgage, Deed of Trust or Security Deed (the "Security Instrument"), dated **SEPTEMBER 20, 2019** and recorded on **SEPTEMBER 20, 2019** in **INSTRUMENT NO. 97410 BOOK 61085 PAGE 188**, of the **OFFICIAL** Records of **WORCESTER COUNTY, MASSACHUSETTS**, and (2) the Note **bearing the same date as**, and secured by, the Security Instrument, which covers the real and personal property described in the Security Instrument and defined therein as the "Property", located at

18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

(Property Address)

the real property described being set forth as follows:

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

In consideration of the mutual promises and agreements exchanged, the parties hereto agree as follows (notwithstanding anything to the contrary contained in the Note or Security Instrument):

1. As of, **MAY 1, 2023** the amount payable under the Note and the Security Instrument (the "Unpaid Principal Balance") is U.S. **\$234,786.31**, consisting of the amount(s) loaned to Borrower by Lender, plus capitalized interest and other amounts capitalized, which is limited to escrows, and any legal fees and related foreclosure costs that may have been accrued for work completed, in the amount of U.S. **\$0.00**.
2. Borrower promises to pay the Unpaid Principal Balance, plus interest, to the order of Lender. Interest will be charged on the Unpaid Principal Balance at the yearly rate of **4.7500%**, from **MAY 1, 2023**. The Borrower promises to make monthly payments of principal and interest of U.S. \$ **1,093.54**, beginning on the **1ST** day of **JUNE, 2023**, and continuing thereafter on the same day of each succeeding month until principal and interest are paid in full. If on **MAY 1, 2063** (the "Maturity Date"), the Borrower still owes amounts under the Note and the Security Instrument, as amended by this Agreement, Borrower will pay these amounts in full on the Maturity Date.
3. If all or any part of the Property or any interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or

transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by the Security Instrument.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by the Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by the Security Instrument without further notice or demand on Borrower.

4. Borrower also will comply with all other covenants, agreements, and requirements of the Security Instrument, including without limitation, Borrower's covenants and agreements to make all payments of taxes, insurance premiums, assessments, escrow items, impounds, and all other payments that Borrower is obligated to make under the Security Instrument; however, the following terms and provisions are forever canceled, null and void, as of the date specified in paragraph No. 1 above:
 - (a) all terms and provisions of the Note and Security Instrument (if any) providing for, implementing, or relating to, any change or adjustment in the rate of interest payable under the Note; and
 - (b) all terms and provisions of any adjustable rate rider, or other instrument or document that is affixed to, wholly or partially incorporated into, or is part of, the Note or Security Instrument and that contains any such terms and provisions as those referred to in (a) above.
5. **If the Borrower has, since inception of this loan but prior to this Agreement, received a discharge in a Chapter 7 bankruptcy, and there having been no valid reaffirmation of the underlying debt, by entering into this Agreement, the Lender is not attempting to re-establish any personal liability for the underlying debt.**
6. Nothing in this Agreement shall be understood or construed to be a satisfaction or release in whole or in part of the Note and Security Instrument. Except as otherwise specifically provided in this Agreement, the Note and Security Instrument will remain unchanged, and Borrower and Lender will be bound by, and comply with, all of the terms and provisions thereof, as amended by this Agreement.
7. Borrower agrees to make and execute other documents or papers as may be necessary to effectuate the terms and conditions of this Agreement which, if approved and accepted by Lender, shall bind and inure to the heirs, executors, administrators, and assigns of the Borrower.

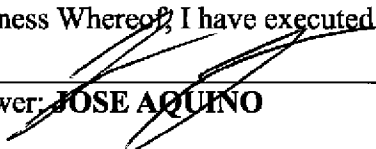


HUD-HAMP 01312023_356

Page 4



In Witness Whereof, I have executed this Agreement.


Borrower: JOSE AQUINO

5-17-23
Date

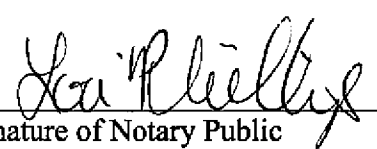
_____[Space Below This Line for Acknowledgments]_____

BORROWER ACKNOWLEDGMENT

STATE OF MASSACHUSETTS

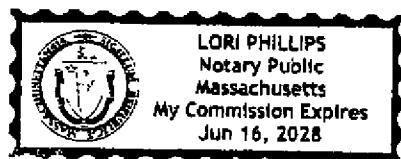
COUNTY OF Worcester

On this 17 day of May, 20 23, before me, the undersigned notary public, personally appeared JOSE AQUINO, proved to me through satisfactory evidence of identification, which were MA Driver's License, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.



Signature of Notary Public

Print Name: Lori Phillips



In Witness Whereof, the Lender has executed this Agreement.

POA REC DATE: 03/21/2018 Instrument No. 26420 Book: 58569 Page: 111

**LAKEVIEW LOAN SERVICING, LLC, BY FLAGSTAR BANK, N.A., ATTORNEY
IN FACT UNDER LIMITED POA**

By Bridget Booker Bridget Booker MAY 19 2023
(print name) Date
(title)

_____[Space Below This Line for Acknowledgments]_____

LENDER ACKNOWLEDGMENT

State of Texas

County of Dallas

This instrument was acknowledged before me on

MAY 19 2023 by Bridget Booker,

known to me to be the person whose name is signed on the preceding document and

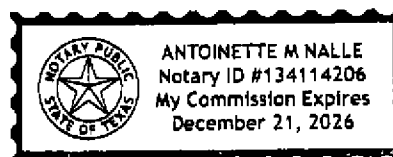
acknowledged to me that he/she signed it voluntarily for the stated purpose as the

Vice President of LAKEVIEW LOAN SERVICING, LLC, BY
FLAGSTAR BANK, N.A., ATTORNEY IN FACT UNDER LIMITED POA

, the company that executed the instrument or the person who executed the instrument on
behalf of said company, and acknowledged to me that such company executed the same.

This notarial act was an online notarization using communication technology

Antoinette M. Nalle
Notary Public



Printed Name: Antoinette M. Nalle

My commission expires: 122126

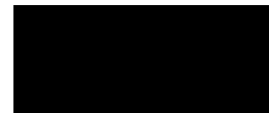


EXHIBIT A

BORROWER(S): JOSE AQUINO, INDIVIDUALLY

LOAN NUMBER: 

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF WINCHENDON, COUNTY OF WORCESTER, STATE OF MASSACHUSETTS, and described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

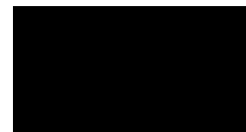
CONTAINING 3.2092 ACRES, ACCORDING TO SAID PLAN.

Being the same property conveyed to JOSE AQUINO, INDIVIDUALLY from RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE by Deed dated 09/20/2019 and recorded on 09/20/2019 in the Register of Deed for WORCESTER County, MASSACHUSETTS in Deed Instrument 97409 Deed Book: 61085, Page: 185

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

HUD-HAMP 01312023_356

Page 7



ATTEST: WORC Kathryn A. Toomey, Register

EXHIBIT F

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 58498
Document Type	: AGR
Recorded Date	: July 25, 2024
Recorded Time	: 03:10:24 PM
Recorded Book and Page	: 70806 / 92
Number of Pages(including cover sheet)	: 7
Receipt Number	: 1587376
Recording Fee	: \$105.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 368-7000

This Document Prepared By:

TERNISHA TOWNSEND

FLAGSTAR BANK, N.A.

8800 BAYMEADOWS WAY WEST, SUITE 400

JACKSONVILLE, FL 32256

800-393-4887

When Recorded Mail To:

FIRST AMERICAN TITLE

DTO REC., MAIL CODE: 4002

4795 REGENT BLVD

IRVING, TX 75063

Source of Title: INSTRUMENT NO. 97409 BOOK 61085, AT PAGE(S) 185

Tax/Parcel #: 1315

_____[Space Above This Line for Recording Data]_____

Original Principal Amount: \$248,613.00

FHA/VA Case No.: _____

Unpaid Principal Amount: \$234,125.69

Loan No: _____

New Principal Amount: \$248,406.66

New Money (Cap): \$14,280.97

POA Rec Date: 03/21/2018 Instrument Number: 26420

Book: 58569 Page:111 County of Record: WORCESTER

LOAN MODIFICATION AGREEMENT (MORTGAGE)

This Loan Modification Agreement ("Agreement"), made this **21ST** day of **JUNE, 2024**, between **JOSE AQUINO, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475** and **LAKEVIEW LOAN SERVICING, LLC, BY FLAGSTAR BANK N.A., ATTORNEY IN FACT UNDER LIMITED POA** ("Lender"), whose address is **8800 BAYMEADOWS WAY WEST, SUITE 400, JACKSONVILLE, FL 32256**, amends and supplements (1) the Mortgage, Deed of Trust or Security Deed (the "Security Instrument"), dated **SEPTEMBER 20, 2019** and recorded on **SEPTEMBER 20, 2019** in **INSTRUMENT NO. 97410 BOOK 61085 PAGE 188**, of the **OFFICIAL** Records of **WORCESTER COUNTY, MASSACHUSETTS**, and (2) the Note bearing the same date as, and secured by, the Security Instrument, which covers the real and personal property described in the Security Instrument and defined therein as the "Property", located at

18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

(Property Address)

the real property described being set forth as follows:

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

In consideration of the mutual promises and agreements exchanged, the parties hereto agree as follows (notwithstanding anything to the contrary contained in the Note or Security Instrument):

1. As of, **JULY 1, 2024** the amount payable under the Note and the Security Instrument (the "Unpaid Principal Balance") is U.S. **\$248,406.66**, consisting of the amount(s) loaned to Borrower by Lender, plus capitalized interest and other amounts capitalized, which is limited to escrows, and any legal fees and related foreclosure costs that may have been accrued for work completed, in the amount of U.S. **\$14,280.97**.
2. Borrower promises to pay the Unpaid Principal Balance, plus interest, to the order of Lender. Interest will be charged on the Unpaid Principal Balance at the yearly rate of **7.5000%**, from **JULY 1, 2024**. The Borrower promises to make monthly payments of principal and interest of U.S. \$ **1,634.69**, beginning on the **1ST** day of **AUGUST, 2024**, and continuing thereafter on the same day of each succeeding month until principal and interest are paid in full. If on **JULY 1, 2064** (the "Maturity Date"), the Borrower still owes amounts under the Note and the Security Instrument, as amended by this Agreement, Borrower will pay these amounts in full on the Maturity Date.
3. If all or any part of the Property or any interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by the Security Instrument.

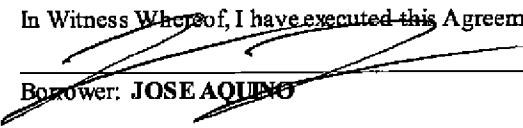
If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by the Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by the Security Instrument without further notice or demand on Borrower.

4. Borrower also will comply with all other covenants, agreements, and requirements of the Security Instrument, including without limitation, Borrower's covenants and agreements to make all payments of taxes, insurance premiums, assessments, escrow items, impounds, and all other payments that Borrower is obligated to make under the Security Instrument; however, the following terms and provisions are forever canceled, null and void, as of the date specified in paragraph No. 1 above:
 - (a) all terms and provisions of the Note and Security Instrument (if any) providing for, implementing, or relating to, any change or adjustment in the rate of interest payable under the Note; and
 - (b) all terms and provisions of any adjustable rate rider, or other instrument or document that is affixed to, wholly or partially incorporated into, or is part of, the Note or Security Instrument and that contains any such terms and provisions as those referred to in (a) above.
5. If the Borrower has, since inception of this loan but prior to this Agreement, received a discharge in a Chapter 7 bankruptcy, and there having been no valid reaffirmation of the underlying debt, by entering into this Agreement, the Lender is not attempting to re-establish any personal liability for the underlying debt.
6. Nothing in this Agreement shall be understood or construed to be a satisfaction or release in whole or in part of the Note and Security Instrument. Except as otherwise specifically provided in this

Agreement, the Note and Security Instrument will remain unchanged, and Borrower and Lender will be bound by, and comply with, all of the terms and provisions thereof, as amended by this Agreement.

7. Borrower agrees to make and execute other documents or papers as may be necessary to effectuate the terms and conditions of this Agreement which, if approved and accepted by Lender, shall bind and inure to the heirs, executors, administrators, and assigns of the Borrower.

In Witness Whereof, I have executed this Agreement.


Borrower: JOSE AOUNO

7-9-24

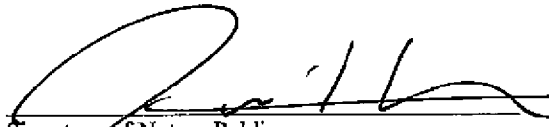
Date

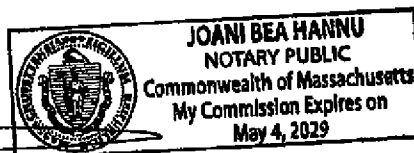
_____[Space Below This Line for Acknowledgments]_____

BORROWER ACKNOWLEDGMENT

STATE/Commonwealth OF MASSACHUSETTS
COUNTY OF Worcester

On this 9th day of July, 20 24, before me, the undersigned notary public, personally appeared JOSE AOUNO, proved to me through satisfactory evidence of identification, which were Drivers License (description of Identify Card or Document), to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.


Signature of Notary Public



Notary Printed Name: Joani Hannu



POA Rec Date: 03/21/2018 Instrument Number: 26420
Book: 58569 Page:111 County of Record: WORCESTER

In Witness Whereof, the Lender has executed this Agreement.

LAKEVIEW LOAN SERVICING, LLC, BY FLAGSTAR BANK N.A., ATTORNEY IN FACT UNDER
LIMITED POA

By *Cheryl Fey* **Cheryl Fey**
Vice President
(print name)
(title)

JUL 12 2024
Date

_____[Space Below This Line for Acknowledgments]_____

LENDER ACKNOWLEDGMENT

State/Commonwealth of Texas

County of Dallas

JUL 12 2024

This instrument was acknowledged before me on _____ by
Cheryl Fey, known to me to be the person whose name is signed on the preceding
document and acknowledged to me that he/she signed it voluntarily for the stated purpose as the
Vice President of LAKEVIEW LOAN SERVICING, LLC, BY FLAGSTAR BANK
N.A., ATTORNEY IN FACT UNDER LIMITED POA, the company that executed the instrument the
instrument or the person who executed the instrument on behalf of said corporation, and acknowledged to me
that such corporation executed the same.

N/A This notarial act was an online notarization using communication technology.

Toby A Yannacone-Smith
Notary Public

Printed Name: Toby A Yannacone-Smith

My commission expires: DEC 21 2026

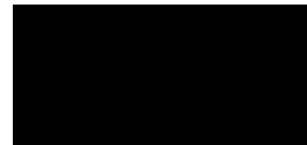
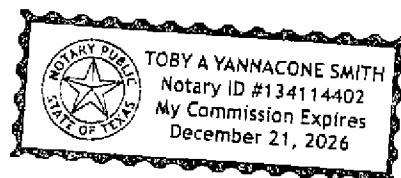


EXHIBIT A

BORROWER(S): JOSE AQUINO, INDIVIDUALLY

LOAN NUMBER: [REDACTED]

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF WINCHENDON, COUNTY OF WORCESTER, STATE OF MASSACHUSETTS, and described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

CONTAINING 3.2092 ACRES, ACCORDING TO SAID PLAN.

Being the same property conveyed to JOSE AQUINO, INDIVIDUALLY from RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE by Deed dated _____ and recorded on 09/20/2019 in the Register of Deed for WORCESTER County, MASSACHUSETTS in Deed Instrument 97409 Deed Book: 61085, Page: 185

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

EXHIBIT G

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 44939
Document Type	: AGR
Recorded Date	: June 04, 2025
Recorded Time	: 02:15:09 PM
Recorded Book and Page	: 72077 / 80
Number of Pages(including cover sheet)	: 8
Receipt Number	: 1642472
Recording Fee	: \$105.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 368-7000

This Document Prepared By:
M&T Bank
Desiree Schroeder
475 Crosspoint Pkwy
Getzville, NY 14068
800-724-2440

WHEN RECORDED MAIL TO:
TIMIOS
5716 CORSA AVE, SUITE 102
WESTLAKE VILLAGE, CA 91362
818-706-6400

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LOAN MODIFICATION AGREEMENT

Date of Document: April 22, 2025

Grantor(s)/Borrower(s): JOSE AQUINO, INDIVIDUALLY

Grantee/Lender: LAKEVIEW LOAN SERVICING, LLC BY ITS ATTORNEY-IN-FACT M&T BANK

Grantee/Lender Mailing Address: 4425 PONCE DE LEON BLVD 5TH FLOOR, CORAL GABLES, FL 33146

Tax/Parcel #: 4-0-176

Original Loan Amount: \$248,613.00

Unpaid Principal Amount: \$248,406.66

New Principal Amount: \$267,297.01

New Money (Cap): \$18,890.35

Maturity Date: 04/01/2065

This Document Prepared By:

M&T Bank
Desiree Schroeder
475 Crosspoint Pkwy
Getzville, NY 14068
800-724-2440

_____[Space Above This Line for Recording Data]_____

Loan No. _____

FHA Case No.: _____

Original Loan Amount: \$248,613.00
Unpaid Principal Amount: \$248,406.66
New Principal Amount: \$267,297.01
New Money (Cap): \$18,890.35

LOAN MODIFICATION AGREEMENT

(Providing for Fixed Interest Rate)

This Loan Modification Agreement ("Agreement"), made this **April 22, 2025**, between **JOSE AQUINO, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MA 01475** and **LAKEVIEW LOAN SERVICING, LLC BY ITS ATTORNEY-IN-FACT M&T BANK** ("Lender"), whose address is **4425 PONCE DE LEON BLVD 5TH FLOOR, CORAL GABLES, FL 33146**, amends and supplements (1) the Mortgage, Deed of Trust or Security Deed (the "Security Instrument"), dated **September 20, 2019** and recorded on **September 20, 2019** in Book 61085, Page 188, as Instrument No. 97410, of the **OFFICIAL** Records of **WORCESTER COUNTY, MA**, and (2) the Note **bearing the same date as**, and secured by, the Security Instrument, which covers the real and personal property described in the Security Instrument and defined therein as the "Property", located at,

18 BROOKS RD, WINCHENDON, MA 01475
(Property Address)

the real property described being set forth as follows:

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

In consideration of the mutual promises and agreements exchanged, the parties hereto agree as follows (notwithstanding anything to the contrary contained in the Note or Security Instrument):

- 1) As of **May 1, 2025**, the amount payable under the Note and the Security Instrument (the "New Principal Balance") is U.S. **\$267,297.01**, consisting of the unpaid amount(s) loaned to Borrower by Lender plus any interest and other amounts capitalized.
- 2) Borrower promises to pay the Unpaid Principal Balance, plus interest, to the order of Lender. Interest will be charged on the Unpaid Principal Balance at the yearly rate of **7.125%** from **April 1, 2025**. Borrower promises to pay monthly payments of principal and interest of U.S. **\$1,685.39** beginning on **May 1, 2025** and continuing thereafter on the same day of each succeeding month until principal and interest are paid in full. The yearly rate of **7.125%** will remain in effect until the principal and interest are paid in full. If on **April 1, 2065** (the

Maturity Date), Borrower still owes amounts under the Note and the Security Instrument, as amended by this Agreement, Borrower will pay these amounts in full on the Maturity Date.

- 3) If all or any part of the Property or any interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by the Security Instrument.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is delivered or mailed within which Borrower must pay all sums secured by the Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by the Security Instrument without further notice or demand on Borrower.

- 4) Borrower also will comply with all other covenants, agreements, and requirements of the Security Instrument, including without limitation, Borrower's covenants and agreements to make all payments of taxes, insurance premiums, assessments, escrow items, impounds, and all other payments that Borrower is obligated to make under the Security Instrument; however, the following terms and provisions are forever canceled, null and void, as of the date specified in paragraph No. 1 above:

(a) all terms and provisions of the Note and Security Instrument (if any) providing for, implementing, or relating to, any change or adjustment in the rate of interest payable under the Note

(b) all terms and provisions of any adjustable rate rider, or other instrument or document that is affixed to, wholly or partially incorporated into, or is part of, the Note or Security Instrument and that contains any such terms and provisions as those referred to in (a) above.

- 5) Borrower understands and agrees that:

(a) All the rights and remedies, stipulations, and conditions contained in the Security Instrument relating to default in the making of payments under the Security Instrument shall also apply to default in the making of the modified payments hereunder.

(b) All covenants, agreements, stipulations, and conditions in the Note and Security Instrument shall be and remain in full force and effect, except as herein modified, and none of the Borrower's obligations or liabilities under the Note and Security Instrument shall be diminished or released by any provisions hereof, nor shall this Agreement in any way impair, diminish, or affect any of Lender's rights under or remedies on the Note and Security Instrument, whether such rights or remedies arise thereunder or by operation of law. Also, all rights of recourse to which Lender is presently entitled against any property or any other persons in any way obligated for, or liable on, the Note and Security Instrument are expressly reserved by Lender.

(c) Nothing in this Agreement shall be understood or construed to be a satisfaction or release in whole or in part of the Note and Security Instrument.

(d) All costs and expenses incurred by Lender in connection with this Agreement, including recording fees, title examination, and attorney's fees, shall be paid by the Borrower and shall be secured by the Security Instrument, unless stipulated otherwise by Lender.

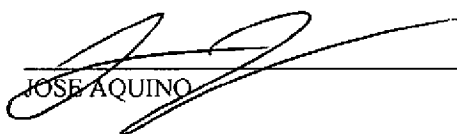
(e) Borrower agrees to make and execute such other documents or papers as may be necessary or required to effectuate the terms and conditions of this Agreement which, if approved and accepted by Lender, shall bind and inure to the heirs, executors, administrators, and assigns of the Borrower.

(f) Borrower authorizes Lender, and Lender's successors and assigns, to share Borrower information including, but not limited to (i) name, address, and telephone number, (ii) Social Security Number, (iii) credit score, (iv) income, (v) payment history, (vi) account balances and activity, including information about any modification or foreclosure relief programs, with Third Parties that can assist Lender and Borrower in obtaining a foreclosure prevention alternative, or otherwise provide support services related to Borrower's loan. For purposes of this section, Third Parties include a counseling agency, state or local Housing Finance Agency or similar entity, any insurer, guarantor, or servicer that insures, guarantees, or services Borrower's loan or any other mortgage loan secured by the Property on which Borrower is obligated, or to any companies that perform support services to them in connection with Borrower's loan.

Borrower consents to being contacted by Lender or Third Parties concerning mortgage assistance relating to Borrower's loan including the trial period plan to modify Borrower's loan, at any telephone number, including mobile telephone number, or email address Borrower has provided to Lender or Third Parties.

By checking this box, Borrower also consents to being contacted by text messaging ☐

In Witness Whereof, I have executed this Agreement.


JOSE AQUINO

5-3-25
Date

COMMONWEALTH OF MASSACHUSETTS }
COUNTY OF Worcester }

On this 3rd of May, 2025, before me, Dana Hardy (name of notary public),
JOSE AQUINO, (name of document signer) personally appeared and proved to me through satisfactory
evidence of identification, which were Valid MA Dr. License to be the person whose name is signed on the
preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated
purpose.

(as partner for _____, a partnership)

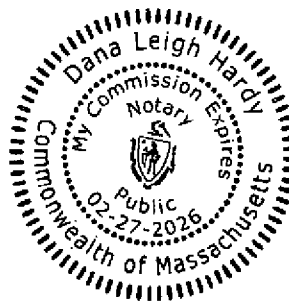
(as _____ for _____, a corporation)

(as attorney in fact for _____, the principal)

(as _____ for _____, (a) (the) _____)

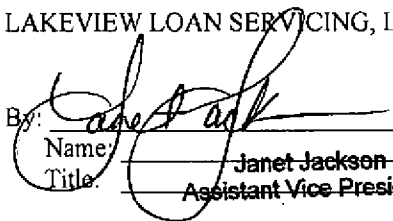
Dana Hardy
Notary Public
Print: Dana Hardy
My Commission Expires: 2-27-2026

(Seal)



_____[Space Below This Line for Lender Acknowledgments]_____

LAKEVIEW LOAN SERVICING, LLC BY AND THROUGH ITS ATTORNEY IN FACT, M&T BANK

By: 
Name: Janet Jackson
Title: Assistant Vice President

5/22/25
Date

LENDER ACKNOWLEDGEMENT

STATE OF NEW YORK

COUNTY OF Erie

On 22 day of May, 2025, before me, the undersigned, personally appeared Janet Jackson, Assistant Vice President personally known to me or proved to me on the basis of satisfactory evidence to be the individual(s) whose name(s) is(are) subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their capacity(ies), that by his/her their signature(s) on the instrument, the individual(s), or the person upon behalf of which the individual(s) acted, executed the instrument, and that such individual made such appearance before the undersigned in the City of Geddes, County of Erie, State of New York.


Signature of Notary Public

Print: _____

MYRANDA NEMETH
NOTARY PUBLIC STATE OF NEW YORK
ERIE COUNTY
LIC. #01NE0012910
COMM. EXP. 08/30/2027

(Seal)

EXHIBIT A

BORROWER(S): JOSE AQUINO, INDIVIDUALLY

Loan No. [REDACTED]

LEGAL DESCRIPTION:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHEASTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AS NUMBER 18 BROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH EQUALS TO 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

BEING THE SAME PROPERTY CONVEYED TO JOSE AQUINO, INDIVIDUALLY FROM RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE BY DEED DATED 09/20/2019 AND RECORDED ON 09/20/2019 IN THE REGISTER OF DEEDS FOR WORCESTER COUNTY, MASSACHUSETTS IN DEED INSTRUMENT NO. 94709, BOOK 61085 AND PAGE 185.

Tax/Parcel #: 4-0-176

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MA 01475

ATTEST: WORC Kathryn A. Toomey, Register

EXHIBIT H

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 95427
Document Type	: MTG
Recorded Date	: August 30, 2022
Recorded Time	: 09:30:30 AM
Recorded Book and Page	: 68141 / 173
Number of Pages(including cover sheet)	: 7
Receipt Number	: 1467198
Recording Fee	: \$205.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 798-7717

This Document Prepared By:
CHRIS SPERA
FLAGSTAR BANK, FSB
532 RIVERSIDE AVE.
JACKSONVILLE, FL 32202
800-393-4887

When Recorded Mail To:
FIRST AMERICAN TITLE
ATTN: JAVIER TONY VARGAS
3 FIRST AMERICAN WAY
SANTA ANA, CA 92707

Source of Title: **INSTRUMENT NO. 97409 BOOK 61085, AT PAGE(S) 185**
Tax/Parcel #: **1315**

_____ [Space Above This Line for Recording Data] _____

FHA Case No.: _____

Loan No: _____

18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475
(herein "Property Address")

PARTIAL CLAIMS MORTGAGE

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on **AUGUST 12, 2022**. The mortgagor is **JOSE AQUINO, SINGLE, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475**. This Security Instrument is given to the **Secretary of Housing and Urban Development**, whose address is **451 Seventh Street SW, Washington, DC 20410** ("Lender"). Borrower owes Lender the principal sum of **FIFTY-TWO THOUSAND NINE HUNDRED FIFTY-FIVE DOLLARS AND 47 CENTS (U.S. \$52,955.47)**. This debt is evidenced by Borrower's note dated the same date as this Security Instrument ("Note"), which provides for the full debt, if not paid earlier, due and payable on **OCTOBER 1, 2049**.

Partial Claims Agreement 05042022_105

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to the Lender, with power of sale, the following described property located in the County of **WORCESTER**, State of **MASSACHUSETTS**:

which has the address of , **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475** (herein "Property Address");

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

Tax Parcel No. **1315**

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing, is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to mortgage, grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal. Borrower shall pay when due the principal of the debt evidenced by the Note.

2. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

3. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower. Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the



Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the term of this Security Instrument or the Note without that Borrower's consent.

4. Notices. Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to: Department of Housing and Urban Development, Attention: Single Family Notes Branch, 451 Seventh Street SW, Washington, DC 20410 or any address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.

5. Governing Law; Severability. This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable.

6. Borrower's Copy. Borrower shall be given one conformed copy of the Note and of this Security Instrument.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

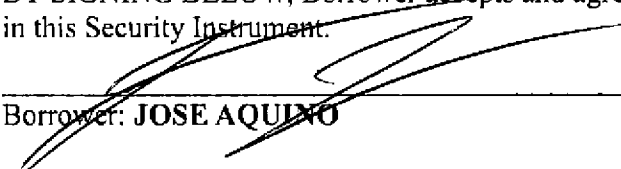
7. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument. The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 4 of the Subordinate Note,

the Secretary may invoke the non-judicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. § 3751 *et seq.*) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided by the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Paragraph or applicable law.



BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument.


Borrower: JOSE AQUINO

8-25-22
Date

_____[Space Below This Line for Acknowledgments]_____

BORROWER ACKNOWLEDGMENT

STATE OF MASSACHUSETTS

COUNTY OF Worcester

On this 25 day of August, 2022, before me, the undersigned notary public, personally appeared JOSE AQUINO, proved to me through satisfactory evidence of identification, which were drivers license, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.



Signature of Notary Public

Print Name: Maria Bosse

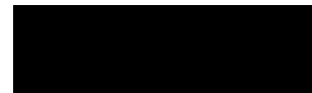
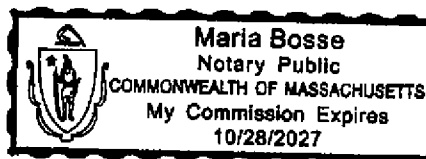


EXHIBIT A

BORROWER(S): JOSE AQUINO, SINGLE, INDIVIDUALLY

LOAN NUMBER: 

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF WINCHENDON, COUNTY OF WORCESTER, STATE OF MA, and described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

CONTAINING 3.2092 ACRES, ACCORDING TO SAID PLAN.

Being the same property conveyed to JOSE AQUINO, SINGLE, INDIVIDUALLY from RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE by Deed dated 09/20/2019 and recorded on 09/20/2019 in the Register of Deed for WORCESTER County, MASSACHUSETTS in Deed Instrument 97409 Deed Book: 61085, Page: 185

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475



EXHIBIT I

Worcester South District Registry of Deeds Electronically Recorded Document

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Recording Information

Document Number	: 40316
Document Type	: MTG
Recorded Date	: May 25, 2023
Recorded Time	: 09:22:27 AM
Recorded Book and Page	: 69173 / 296
Number of Pages(including cover sheet)	: 7
Receipt Number	: 1515348
Recording Fee	: \$205.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 368-7000

This Document Prepared By:

EDI DONLIC

FLAGSTAR BANK, N.A.

8800 BAYMEADOWS WAY WEST, SUITE 400

JACKSONVILLE, FL 32256

800-393-4887

When Recorded Mail To:

FIRST AMERICAN TITLE

DTO REC., MAIL CODE: 4002

4795 REGENT BLVD

IRVING, TX 75063

**Source of Title: INSTRUMENT NO./CRFN 97409 BOOK/LIBER/REEL 61085, AT
PAGE(S) 185**

Tax/Parcel #: 4 0 176

_____ [Space Above This Line for Recording Data] _____

FHA Case No.: _____

Loan No: _____

18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475
(herein "Property Address")

PARTIAL CLAIMS MORTGAGE

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on **MAY 9, 2023**. The mortgagor is **JOSE AQUINO, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475**. This Security Instrument is given to the **Secretary of Housing and Urban Development**, whose address is **451 Seventh Street SW, Washington, DC 20410** ("Lender"). Borrower owes Lender the principal sum of **FOURTEEN THOUSAND FIVE HUNDRED TWENTY-THREE DOLLARS AND 25 CENTS** (U.S. \$14,523.25). This debt is evidenced by Borrower's note

HUD-HAMP 01312023_356

dated the same date as this Security Instrument ("Note"), which provides for the full debt, if not paid earlier, due and payable on **MAY 1, 2063**.

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to the Lender, with power of sale, the following described property located in the County of **WORCESTER**, State of **MASSACHUSETTS**:

which has the address of , **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475** (herein "Property Address");

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

Tax Parcel No. **4 0 176**

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing, is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to mortgage, grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal. Borrower shall pay when due the principal of the debt evidenced by the Note.

2. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

3. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower. Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the term of this Security Instrument or the Note without that Borrower's consent.

4. Notices. Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to: Department of Housing and Urban Development, Attention: Single Family Notes Branch, 451 Seventh Street SW, Washington, DC 20410 or any address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.

5. Governing Law; Severability. This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable.

6. Borrower's Copy. Borrower shall be given one conformed copy of the Note and of this Security Instrument.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

7. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument. The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further



demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 4 of the Subordinate Note, the Secretary may invoke the non-judicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. § 3751 *et seq.*) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided by the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Paragraph or applicable law.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument.

Borrower: JOSE AQUINO

5-17-23
Date

[Space Below This Line for Acknowledgments]

BORROWER ACKNOWLEDGMENT

STATE OF MASSACHUSETTS

COUNTY OF Worcester

On this 17 day of May, 2023, before me, the undersigned notary public, personally appeared JOSE AQUINO, proved to me through satisfactory evidence of identification, which were MA Drivers License, to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.

Lori Phillips
Signature of Notary Public

Print Name: Lori Phillips

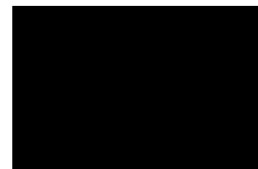
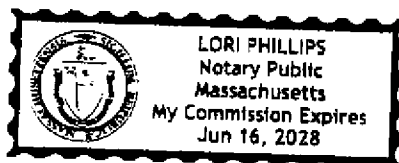


EXHIBIT A

BORROWER(S): JOSE AQUINO, INDIVIDUALLY

LOAN NUMBER: 

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF WINCHENDON, COUNTY OF WORCESTER, STATE OF MASSACHUSETTS, and described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

CONTAINING 3.2092 ACRES, ACCORDING TO SAID PLAN.

Being the same property conveyed to JOSE AQUINO, INDIVIDUALLY from RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE by Deed dated 09/20/2019 and recorded on 09/20/2019 in the Register of Deed for WORCESTER County, MASSACHUSETTS in Deed Instrument 97409 Deed Book: 61085, Page: 185

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

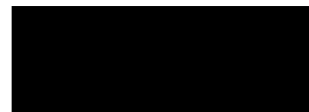


EXHIBIT J

Worcester South District Registry of Deeds Electronically Recorded Document

This is the first page of the document – Do not remove

Recording Information

Document Number	: 55112
Document Type	: MTG
Recorded Date	: July 16, 2024
Recorded Time	: 09:25:31 AM
Recorded Book and Page	: 70761 / 44
Number of Pages(including cover sheet)	: 6
Receipt Number	: 1585472
Recording Fee	: \$205.00

Worcester South District Registry of Deeds
Kathryn A. Toomey, Register
90 Front St
Worcester, MA 01608
(508) 368-7000

This Document Prepared By:

TERNISHA TOWNSEND

FLAGSTAR BANK, N.A.

8800 BAYMEADOWS WAY WEST, SUITE 400

JACKSONVILLE, FL 32256

800-393-4887

When Recorded Mail To:

FIRST AMERICAN TITLE

DTO REC., MAIL CODE: 4002

4795 REGENT BLVD

IRVING, TX 75063

Source of Title: **INSTRUMENT NO./CRFN 97409 BOOK/LIBER/REEL 61085, AT PAGE(S) 185**

Tax/Parcel #: **1315**

_____[Space Above This Line for Recording Data]

FHA Case No.: [REDACTED]

Loan No: [REDACTED]

PARTIAL CLAIMS MORTGAGE

THIS SUBORDINATE MORTGAGE ("Security Instrument") is given on **JUNE 21, 2024**. The mortgagor is **JOSE AQUINO, INDIVIDUALLY** ("Borrower"), whose address is **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475**. This Security Instrument is given to the **Secretary of Housing and Urban Development**, whose address is **451 Seventh Street SW, Washington, DC 20410** ("Lender"). Borrower owes Lender the principal sum of **SIX THOUSAND FOUR HUNDRED TWENTY-FIVE DOLLARS AND 87 CENTS (U.S. \$6,425.87)**. This debt is evidenced by Borrower's note dated the same date as this Security Instrument ("Note"), which provides for the full debt, if not paid earlier, due and payable on **JULY 1, 2064**.

This Security Instrument secures to Lender: (a) the repayment of the debt evidenced by the Note, and all renewals, extensions and modifications of the Note; (b) the payment of all other sums, advanced under Paragraph 7 to protect the security of this Security Instrument; and (c) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower does hereby mortgage, warrant, grant and convey to the Lender, with power of sale, the following described property located in the County of **WORCESTER**, State of **MASSACHUSETTS**:

which has the address of, **18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475** (herein "Property Address");

SEE EXHIBIT "A" ATTACHED HERETO AND MADE A PART HEREOF:

Tax Parcel No. 1315

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing, is referred to in this Security Instrument as the "Property."

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to mortgage, grant and convey the Property, and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal. Borrower shall pay when due the principal of the debt evidenced by the Note.

2. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time of payment of the sums secured by this Security Instrument granted by Lender to any successor in interest of Borrower shall not operate to release the liability of the original Borrower or Borrower's successor in interest. Lender shall not be required to commence proceedings against any successor in interest or refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or Borrower's successors in interest. Any forbearance by Lender in exercising any right or remedy shall not be a waiver of or preclude the exercise of any right or remedy.

3. Successors and Assigns Bound; Joint and Several Liability; Co-signers. The covenants and agreements of this Security Instrument shall bind and benefit the successors and assigns of Lender and Borrower. Borrower's covenants and agreements shall be joint and several. Any Borrower who co-signs this Security Instrument but does not execute the Note: (a) is co-signing this Security Instrument only to mortgage, grant and convey that Borrower's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower may agree to extend, modify, forbear or make any accommodations with regard to the term of this Security Instrument or the Note without that Borrower's consent.

4. Notices. Any notice to Borrower provided for in this Security Instrument shall be given by delivering it or by mailing it by first class mail unless applicable law requires use of another method. The notice shall be directed to the Property Address or any other address Borrower designates by notice to Lender. Any notice to Lender shall be given by first class mail to: Department of Housing and Urban Development, Attention: Single Family Notes Branch, 451 Seventh Street SW, Washington, DC 20410 or any address Lender designates by notice to Borrower. Any notice provided for in this Security Instrument shall be deemed to have been given to Borrower or Lender when given as provided in this paragraph.

5. Governing Law; Severability. This Security Instrument shall be governed by Federal law and the law of the jurisdiction in which the Property is located. In the event that any provision or clause of this Security Instrument or the Note conflicts with applicable law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision. To this end the provisions of this Security Instrument and the Note are declared to be severable.

6. Borrower's Copy. Borrower shall be given one conformed copy of the Note and of this Security Instrument.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

7. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument. The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 7, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Paragraph 4 of the Subordinate Note, the Secretary may invoke the non-judicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. § 3751 *et seq.*) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided by the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Paragraph or applicable law.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument

JOSE AQUINO
Borrower: JOSE AQUINO

7-9-24
Date

[Space Below This Line for Acknowledgments]

BORROWER ACKNOWLEDGMENT

STATE/Commonwealth OF MASSACHUSETTS
COUNTY OF Worcester

On this 9th day of July, 20 24, before me, the undersigned notary public, personally appeared JOSE AQUINO, proved to me through satisfactory evidence of identification, which were Drivers License (description of Identify Card or Document), to be the person whose name is signed on the preceding or attached document, and acknowledged to me that he/she/they signed it voluntarily for its stated purpose.

[Signature]
Signature of Notary Public

Notary Printed Name: Joani Hannu



EXHIBIT A

BORROWER(S): JOSE AQUINO, INDIVIDUALLY

LOAN NUMBER: [REDACTED]

LEGAL DESCRIPTION:

The land referred to in this document is situated in the CITY OF WINCHENDON, COUNTY OF WORCESTER, STATE OF MASSACHUSETTS, and described as follows:

A CERTAIN PARCEL OF LAND, WITH THE BUILDINGS THEREON, ON THE SOUTHWESTERLY LINE OF BROOKS ROAD IN WINCHENDON, WORCESTER COUNTY, MASSACHUSETTS, KNOWN AND NUMBERED 18 ROOKS ROAD, BEING SHOWN AS LOT "4B" ON A PLAN ENTITLED; "PLAN OF LOTS PREPARED FOR TIMOTHY S. HALLIDAY, WINCHENDON, MA, SCALE 1 INCH = 40 FEET, OCTOBER 8, 1998, EDMOND J. BOUCHER, PLS, JOLLY ROD, SOUTH ROYALSTON, MA", WHICH PLAN IS RECORDED WITH WORCESTER DISTRICT REGISTRY OF DEEDS, PLAN BOOK 735, PLAN 67, TO WHICH PLAN REFERENCE IS MADE FOR A MORE PARTICULAR DESCRIPTION OF SAID LOT.

CONTAINING 3.2092 ACRES, ACCORDING TO SAID PLAN.

Being the same property conveyed to JOSE AQUINO, INDIVIDUALLY from RICHARD A. MAYNARD AND JOYCE M. MAYNARD, HUSBAND AND WIFE by Deed dated _____ and recorded on 09/20/2019 in the Register of Deed for WORCESTER County, MASSACHUSETTS in Deed Instrument 97409 Deed Book: 61085, Page: 185

ALSO KNOWN AS: 18 BROOKS RD, WINCHENDON, MASSACHUSETTS 01475

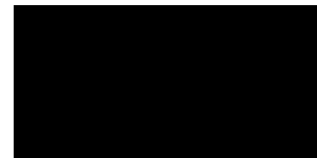


EXHIBIT K



5151 CORPORATE DR
TROY MI 48098-2639
RETURN SERVICE REQUESTED



S-SFFLAG10 L-DE202R
PH1QC100200186 - 722390600 I03727
JOSE AQUINO
18 BROOKS RD
WINCHENDON MA 01475-1903

Loan #



Property Address:

18 Brooks Rd
Winchendon MA 01475

- **This is an important notice concerning your right to live in your home. Have it translated at once.**
- **Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificacion inmediatamente.**
- **Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.**
- **C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.**
- **这是一则关于您居住权的重要通知, 请儘快安排翻译**

90-Day Right to Cure Your Mortgage Default

November 18, 2022

Sent Via Certified Mail and First Class Mail

JOSE AQUINO
18 BROOKS RD
WINCHENDON MA 01475-1903

RE: 18 Brooks Rd Winchendon MA 01475; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee; Loan Originator, JOHN MICHAEL DAHLINGER

To: Jose Aquino

We are contacting you because you did not make your monthly loan payments due on 10/1/22, 11/1/22 to Flagstar Bank as servicer. You must pay the past due amount of \$3,638.99 on or before February 16, 2023, which is 90 days from the date of this notice. The past due amount on the date of this notice is specified below:

Current Due Date of Loan:	October 01, 2022
Total of all Unpaid Payments:	\$3,638.99
Total of Unpaid Late Fees:	\$0.00
Total of Unpaid Other Fees:	\$0.00
Less - Partial Payment Balance:	\$0.00
TOTAL DUE:	\$3,638.99

Unpaid Payment Breakdown:

10/1/2022	\$1,823.48
11/1/2022	\$1,815.51

If you pay the past due amount, and any additional monthly payments, late charges or fees that may become due between the date of this notice and the date when you make your payment, your account will be considered up-to-date and you can continue to make your regular monthly payments.

Make your payment directly to:

Flagstar Bank, P.O. Box 660263, Dallas, TX, 75266-0263.

Please consider the following:

- You should contact the Homeownership Preservation Foundation (888-995-HOPE) to speak with counselors who can provide assistance and may be able to help you work with your lender to avoid foreclosure;
- If you are a MassHousing borrower, you may also contact MassHousing (888-843-6432) to determine if you are eligible for additional assistance. There may be other homeownership assistance available through your lender or servicer;
- You may also contact the Division of Banks (617-956-1500) or visit www.mass.gov/foreclosures to find a foreclosure prevention program near you;
- After February 16, 2023, you can still avoid foreclosure by paying the total past due amount before a foreclosure sale takes place. Depending on the terms of the loan, there may also be other ways to avoid foreclosure, such as selling your property, refinancing your loan, or voluntarily transferring ownership of the property to Lakeview Loan Servicing, LLC.

If you do not pay the total past due amount of \$3,638.99 and any additional payments that may become due by February 16, 2023, you may be evicted from your home after a foreclosure sale. If Lakeview Loan Servicing, LLC forecloses on this property, it means the mortgagee or a new buyer will take over the ownership of your home.

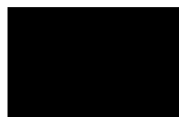
If you have questions, or disagree with the calculation of your past due balance, please contact Flagstar Bank at (800) 393-4887, Monday-Friday, 8:30 a.m.-9 p.m. ET, or Flagstar Bank, W-110-2, 5151 Corporate Drive, Troy, MI 48098.

Sincerely,

Bella Kharson
Flagstar Bank

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

- This is an important notice concerning your right to live in your home. Have it translated at once.
- Esta carta explica sus derechos legales para permanecer en su propiedad de vivienda. Por favor traduzca esta notificación inmediatamente.
- Este é um aviso importante em relação ao seu direito de morar na sua residência. Por favor, tem traduzido imediatamente.
- C'est une notification importante concernant votre droit de vivre chez vous. Faites-la traduire immédiatement.
- 这是一则关于您居住权的重要通知, 请儘快安排翻译



RIGHT TO REQUEST A MODIFIED MORTGAGE LOAN

November 18, 2022

Sent Via Certified Mail and First Class Mail

JOSE AQUINO
18 BROOKS RD
WINCHENDON MA 01475-1903

RE: 18 Brooks Rd Winchendon MA 01475; loan [REDACTED] with Lakeview Loan Servicing, Llc, as mortgagee.

To: Jose Aquino

We are contacting you because our records indicate that you are eligible to request a modification of your mortgage with Flagstar Bank. If you want to request a loan modification or other foreclosure alternative option, you must complete and return the enclosed Mortgage Modification Options form along with any supporting information no later than December 18, 2022. The Mortgage Modification Options form and any supporting documents must be returned by certified mail or similar service to Flagstar Bank as servicer. We will respond to your request within 30 days of its receipt.

Please be aware this notice of the Right to Request a Modified Mortgage Loan is different from the Right to Cure Your Mortgage Default notice that you may have already received. *The enclosed Mortgage Modification Options form provides you with four choices. These choices impact the options under the Right to Cure notice and should be carefully considered.* If you do not want to request a loan modification, you must still return the enclosed Mortgage Modification Options form. Please keep a copy of everything you send to us and keep proof of mailing the materials to us.

If you do not return the enclosed Mortgage Modification Options form and a completed loan modification application by December 18, 2022, your right to cure your mortgage default will end on February 16, 2023.

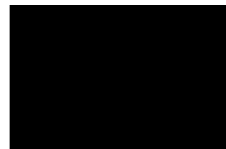
If you have questions, please contact Flagstar Bank at (800) 393-4887, Monday-Friday, 8:30 a.m-9 p.m. ET, or Flagstar Bank, W-110-2, 5151 Corporate Drive, Troy MI 48098. If you would like assistance from the Attorney General's Office, you may contact the HomeCorps hotline at (617) 573-5333 to speak with a loan modification specialist who can assist you. We suggest you mention this notice when you call.

Sincerely,

Bella Kharson
Flagstar Bank

Enclosed with this notice, there may be additional important disclosures related to applicable laws and requirements that you should carefully review.

MORTGAGE MODIFICATION OPTIONS



You must return this form in the enclosed envelope by December 18, 2022.

JOSE AQUINO
18 BROOKS RD
WINCHENDON MA 01475-1903

RE: 18 Brooks Rd Winchendon MA 01475; loan [REDACTED] with Flagstar Bank

To: Jose Aquino

You must check one of the following boxes to notify Flagstar Bank of how you would like to proceed.

- ☐ I would like to request a loan modification. I have attached a complete statement of my income and list of assets, total debts and obligations as requested by the creditor in the form(s) which accompanied the Right to Request a Modified Mortgage Loan Notice. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I would like to request a different foreclosure alternative such as a short sale or deed-in-lieu of foreclosure. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I do not want to request a loan modification or any foreclosure alternative. I maintain my right to a 90 day period to cure my mortgage default.
- ☐ I want to waive my right to cure the default on my mortgage loan and proceed to foreclosure. I understand that by choosing this option I waive the remaining time, if any, of my right to cure period.

Borrower Name

Date

Borrower Telephone Number



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Loss Mitigation Application Homeowner Checklist

For Your Information Only - Do Not Return with your Loss Mitigation Application

GET STARTED – use this checklist to ensure you have completed all required forms and have the right information.

Step 1 ☐ Review the information provided to help you understand your options, responsibilities, and next steps:

- ☐ Avoiding Foreclosure ☐ Frequently Asked Questions ☐ Beware of Foreclosure Rescue Scams

Step 2 ☐ Complete and sign the enclosed Loss Mitigation Application. Must be signed by all borrowers on the mortgage (notarization is not required) and must include:

- ☐ All income, expenses, and assets for each borrower.
☐ An explanation of the financial hardship that makes it difficult to pay the mortgage.
☐ Your acknowledgment and agreement that all information that you provide is true and accurate.

Step 3 ☐ Complete and sign a dated copy of the enclosed IRS 4506-C Form.

- ☐ For each borrower, please submit a signed, dated copy of IRS 4506-C Form.
☐ For borrowers who filed their tax returns jointly, please submit one IRS 4506-C Form signed and dated by both joint filers.

Step 4 ☐ Provide the required Hardship Documentation that will be used to verify your hardship.

- ☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).

Step 5 ☐ Provide required Income Documentation. This documentation will be used to verify your hardship and all of your income (Notice: Alimony, child support, or separate maintenance income does not need to be revealed if you choose not to have it considered for repaying this loan).

- ☐ Follow the instructions set forth on the Loss Mitigation Application Form (enclosed).
☐ You may also disclose any income from a household member who is not on the promissory note (non-borrower contributor), such as a relative, spouse, domestic partner, or fiancé who occupies the property as a primary residence. If you elect to disclose and rely upon this income to qualify, the required income documentation is the same as the income documentation required for a borrower. See Page 4 of the Loss Mitigation Application Form for specific details on income documentation.

Step 6 ☐ Gather and send completed documents (signed and dated)—your Loss Mitigation Application.

You must send in all required documentation listed in steps 2-4 above, and summarized below:

- Loss Mitigation Application Form (enclosed).
- Hardship Documentation as outlined on Page 3 of the Loss Mitigation Application Form (enclosed).
- Income Documentation as outlined on Page 4 of the Loss Mitigation Application Form (enclosed).
- Detailed Loss Mitigation Application—Financial Breakdown Form (enclosed).
- IRS 4506-C Form (enclosed).
- Optional: Third Party Authorization (enclosed).

Please send all documents above to us using any of the methods below:

By Mail:

Flagstar Bank
Loss Mitigation W-110-2
5151 Corporate Drive
Troy, MI 48098

Online:

flagstar.com/myloans

Toll-Free Fax:

(866) 234-9845

IMPORTANT REMINDERS:

- ☐ If you cannot provide the documentation within the time frame provided, have other types of income not specified on Page 4 of the Loss Mitigation Application, cannot locate some or all of the required documents, OR have any questions, please call us at **(800) 393-4887**, Monday-Friday 8:30 a.m.-7 p.m ET.
- ☐ Keep a copy of all documents and proof of mailing/submission for your records. **Don't send original income or hardship documents. Copies are acceptable.**

Questions? Call us at (800)393-4887

Information on Avoiding Foreclosure

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Mortgage Programs Are Available to Help

There are a variety of programs available to help you resolve your delinquency and keep your home. You may be eligible to refinance or modify your mortgage to make your payments and terms more manageable, for instance, lowering your monthly payment to make it more affordable. Or, if you have missed a few payments, you may qualify for a temporary (or permanent) solution to help you get your finances back on track. Depending on your circumstances, staying in your home may not be possible. In this case, a short sale or deed-in-lieu of foreclosure may be a better choice than foreclosure – see the table below for more information:

OPTIONS TO STAY IN YOUR HOME	OVERVIEW	BENEFIT
Refinance	Receive a new loan with lower interest rate or other favorable terms.	Makes your payment or terms more affordable.
Reinstatement	Pay the total outstanding payments owed, in a lump sum, by a specific date. This may follow a forbearance plan as described below.	Allows you to avoid foreclosure by bringing your mortgage current if you can show you have funds that will become available at a specific date in the future.
Repayment Plan	Pay back your past-due payments together with your regular payments over an extended period of time.	Allows you time to catch up on late payments without having to come up with a lump sum.
Forbearance Plan	Make reduced mortgage payments or no mortgage payments for a specific period of time.	Have time to improve your financial situation and get back on your feet.
Modification	Receive modified terms of your mortgage to make it more affordable or manageable after successfully making payments during a "trial period" (that is, completing a three- or four-month trial period plan) that approximate the modified payment.	Permanently modifies your mortgage so that your payments or terms are more manageable as a permanent solution to a long-term or permanent hardship.
OPTIONS TO LEAVE YOUR HOME	OVERVIEW	BENEFIT
Short Sale	Sell your home and pay off a portion of your mortgage balance when you owe more on the home than it is worth.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.
Mortgage Release (Deed-in-Lieu of Foreclosure)	Transfer the ownership of your property to us.	Allows you to transition out of your home without going through foreclosure. In some cases, relocation assistance may be available.

We Want to Help

Take action and gain peace of mind and control of your situation. Complete and return the Loss Mitigation Application to start the process of getting the help you need now.

Frequently Asked Questions

For Your Information Only - Do Not Return with Your Loss Mitigation Application

1. Why Did I Receive this Package?

You received this package because you have either requested loss mitigation assistance, or because we have not received one or more of your monthly mortgage payments and want to help you keep your home if at all possible. By completing this package, we can work together at exploring options that may help resolve any temporary or long-term financial challenge you face in making your mortgage payments.

2. Where Can I Find More Information on Foreclosure Prevention?

Please see the Avoiding Foreclosure enclosure in this package for more information, or you can call **Flagstar Bank at (800) 393-4887**.

3. What if I Don't Want to Stay in My Home Anymore?

You may have good reasons for needing to leave your property, such as a job relocation, a divorce, financial hardship due to the death of a borrower, or some other reason preventing you from keeping your property. If you intend to transition out of your home, please indicate that you want to sell or vacate the property on page 2 of the attached Loss Mitigation Application and we may first evaluate you for a short sale or Mortgage Release (deed-in-lieu of foreclosure). Even if you are approved for one of those workout solutions, we may consider you for a mortgage loan modification.

4. Will it Cost Money to Get Help?

There should never be a fee from your servicer or qualified counselor to obtain assistance or information about foreclosure prevention options. However, foreclosure prevention has become a target for scam artists. Be wary of companies or individuals offering to help you for a fee, and never send a mortgage payment to any company other than the one listed on your monthly mortgage statement or one designated to receive your payments under a state assistance program.

5. What Happens Once I Have Sent the Loss Mitigation Application to You?

We will send you a written notice within five business days of our receipt of your Loss Mitigation Application to confirm that we have received your package and will review it to determine whether it is complete or incomplete. If we determine there is missing information or documentation, we also will send you an incomplete information notice. We cannot guarantee that you will receive any (or a particular type of) assistance.

Within 30 days of receipt of a complete Loss Mitigation Application, we will let you know which foreclosure alternatives, if any, are available to you and will inform you of your next steps to accept our offer. However, if we receive your complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale date, we will strive to process your request as quickly as possible, but you may not receive a notice of incompleteness or a decision on your request prior to sale. Please submit your Loss Mitigation Application as soon as possible.

6. What Happens to My Mortgage While You Are Evaluating My Loss Mitigation Application?

You remain obligated to make all mortgage payments as they come due, even while we are evaluating the types of assistance that may be available.

7. Will the Foreclosure Process Begin if I Do Not Respond to this Letter?

Depending on the status of your loan if you do not respond to this letter, we may refer your loan to foreclosure in accordance with your mortgage loan documents and applicable law.

8. Should I Still Contact You if I Have Waited Too Long and My Property Has Been Referred to an Attorney for Foreclosure?

Yes, the sooner the better!

FREQUENTLY ASKED QUESTIONS continued

9. What if My Property is Scheduled for a Foreclosure Sale in the Future?

If we receive a complete Loss Mitigation Application 37 calendar days or less before a scheduled foreclosure sale, there is no guarantee we can evaluate you for a foreclosure alternative in time to stop the foreclosure sale. Even if we are able to approve you for a foreclosure alternative prior to a sale, a court with jurisdiction over the foreclosure proceeding (if any) or public official charged with carrying out the sale may not halt the scheduled sale.

10. Will My Property be Sold at a Foreclosure Sale if I Accept a Foreclosure Alternative?

No. The property will not be sold at a foreclosure sale if you accept an offer for an alternative to foreclosure and comply with all requirements.

11. Will My Credit Report Be Affected by My Late Payments or Being in Default?

The delinquency status of your loan will continue to be reported to credit reporting agencies as well as your entry into a Repayment Plan, Forbearance Plan, or Trial Period Plan in accordance with the requirements of the Fair Credit Reporting Act and the Consumer Data Industry Association requirements.

12. Will My Credit Score Be Affected if I Accept a Foreclosure Prevention Option?

While the effect on your credit will depend on your individual credit history, credit scoring companies generally would consider your entry into a plan with reduced payments as increasing your credit risk. As a result, entering into a plan with reduced payments may adversely affect your credit score, particularly if you are current on your mortgage or otherwise have a good credit score. However, bringing your loan current through a reinstatement, Repayment Plan, or loan modification and continuing to make timely payments may improve your credit score over time.

13. Is Foreclosure Prevention Counseling Available?

Yes, HUD-approved counselors are available to provide you with the information and assistance you may need to avoid foreclosure. You can use the search tool at hud.gov/offices/hsg/sfh/hcc/fc/ to find a counselor near you.

14. I Have Seen Ads and Flyers From Companies Offering to Help Me Avoid Foreclosure for a Fee. Are These Companies on the Level?

Foreclosure prevention has become a target for scam artists. We suggest using the HUD website referenced in question 13 to locate a counselor near you. Also, please refer to the enclosed "Beware of Foreclosure Rescue Scams" document for more information.

BEWARE OF FORECLOSURE RESCUE SCAMS - TIPS & WARNING SIGNS

For Your Information Only - Do Not Return with Your Loss Mitigation Application

Scam artists are stealing millions of dollars from distressed homeowners by promising immediate relief from foreclosure, or demanding cash for counseling services when HUD-approved counseling agencies provide the same services for FREE. If you receive an offer, information or advice that sounds too good to be true, it probably is. Don't let them take advantage of you, your situation, your house or your money. **Remember, help is FREE.**

How to Spot a Scam - beware of a company or person who:

- Asks for a fee in advance to work with your lender to modify, refinance, or reinstate your mortgage.
- Guarantees they can stop a foreclosure or get your loan modified.
- Advises you to stop paying your mortgage company and pay them instead.
- Pressures you to sign over the deed to your home or sign any paperwork that you haven't had a chance to read or don't fully understand.
- Claims to offer "government-approved" or "official government" loan modifications.
- Asks you to release personal financial information online or over the phone and you have not been working with this person and/or do not know them.

How to Report a Scam - do one of the following:

- Call (888) 995-HOPE (4673) and tell the counselor about your situation and that you believe you got scammed or know of a scam.
- Call the Federal Trade Commission at (877) 382-4357 to report the suspected scam.
- Contact your state's attorney general. Visit naag.org/attorneys_general.php to find the attorney general for your state.
- Contact your state's Consumer Protection Offices. Visit usa.gov/state-consumer to find the Consumer Protection Offices for your state.

The Loan Modification Scam Prevention Network is a national coalition of governmental and private organizations led by Fannie Mae, Freddie Mac, NeighborWorks America™ and the Lawyers' Committee for Civil Rights Under Law.

Loss Mitigation Application



If you are having mortgage payment challenges, please complete and submit this application, along with the required documentation, to **Flagstar Bank** via mail: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online **flagstar.com/myloans** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include your loan number on all pages submitted for review.

We will use the information you provide to help us identify the assistance you may be eligible to receive. If you need help completing this application, please call **Flagstar Bank** at **(800) 393-4887**.

For a list of HUD-approved housing counseling agencies that can provide foreclosure prevention information, contact one of the following federal government agencies:

- The U.S. Department of Housing and Urban Development (HUD) at (800) 569-4287 or hud.gov/counseling.
- The Consumer Financial Protection Bureau (CFPB) at (855) 411-2372 or consumerfinance.gov/mortgagehelp.

If you need assistance with translation or other language assistance, HUD-approved housing counseling agencies may be able to assist you. These services are provided without charge.

Borrower Information

Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Co-Borrower's Name: _____

Social Security Number (Last 4 Digits): _____

Email Address: _____

Primary Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Alternate Phone Number: _____ ☐ Cell ☐ Home ☐ Work ☐ Other

Preferred Contact Method (Choose All That Apply): ☐ Cell phone ☐ Home phone ☐ Work phone ☐ Email

Is either borrower on active duty with the military (including the National Guard and Reserves), the dependent of a borrower on active duty, or the surviving spouse of a member of the military who was on active duty at the time of death? ☐ Yes ☐ No

Non-Borrower Contributor Information

If a non-borrower :

- has agreed to include their income in the review of this Loss Mitigation Application,
- will use their income to contribute toward the mortgage payment, AND
- occupies the property as their primary residence

this section must be completed, the non-borrower contributor's financial information must be provided where indicated throughout the application, and the non-borrower contributor must sign the Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement.

Non-Borrower Contributor's Name: _____

Full Social Security Number: _____ Date of Birth: _____

What percentage of your income will you contribute to household expenses and mortgage payments: _____%

Property Information

Property Address Street: _____
City: _____ State: _____ ZIP Code: _____

Mailing Address (if different from property address)

Street: _____
City: _____ State: _____ ZIP Code: _____

- The property is currently: ☐ A primary residence ☐ A second home ☐ An investment property
- The property is (select all that apply): ☐ Owner occupied ☐ Renter occupied ☐ Vacant
- Is the property subject to condominium or homeowners association (HOA) fees? ☐ Yes ☐ No – If yes, provide the most-recent HOA statement along with the other required documentation requested in this application.
- I want to: ☐ Keep the property ☐ Sell the property ☐ Transfer ownership of the property to the servicer ☐ Undecided
- Is the property listed for sale? ☐ Yes ☐ No – If yes, please refer to the Short Sale Information section below.

Short Sale Information

A short sale is an option that permits the sale of your property for less than the balance remaining on your mortgage loan. If you are interested in pursuing this option, and have your property listed for sale, please provide the information listed below along with the other required documentation requested in this application based on your current situation.

PROPERTY STATUS	REQUIRED DOCUMENTATION
Property Listed—Offer Not Received	• Active MLS • Active Listing Agreement • Third Party Authorization Form
Property Listed—Offer Received	• Active MLS • Active Listing Agreement • Third Party Authorization Form • Purchase Agreement (30+ Days to Closing) • Preliminary Closing Disclosure (HUD-1) (30+ Days to Closing) • Buyer's Pre-Approval (30+ Days to Closing) • Buyer's Articles of Incorporation (If Applicable)

HARDSHIP INFORMATION

The hardship causing mortgage payment challenges began on approximately (date) _____ and is believed to be:

- ☐ Short-term (under 6 months).
☐ Long-term or permanent (greater than 6 months).
☐ Resolved as of (date) _____.

TYPE OF HARDSHIP (CHECK ALL THAT APPLY)	REQUIRED HARDSHIP DOCUMENTATION
☐ Unemployment Actively Seeking Employment? ☐ Yes ☐ No	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Reduction in income: a hardship that has caused a decrease in your income due to circumstances outside your control (e.g., elimination of overtime, reduction in regular working hours, a reduction in base pay)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Increase in housing-related expenses: a hardship that has caused an increase in your housing expenses due to circumstances outside your control (e.g., uninsured losses, increased property taxes, HOA special assessment)	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Disaster (natural or man-made) impacting the property or the borrower's place of employment	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.
☐ Long-term or permanent disability, or serious illness of a borrower/co-borrower or dependent family member	☒ Written statement from the borrower, or other documentation verifying disability or illness. ☒ Note: Detailed medical information is not required, and information from a medical provider is not required.
☐ Divorce or legal separation	☒ Final divorce decree or final separation agreement. ☒ Recorded quitclaim deed.
☐ Separation of borrowers unrelated by marriage, civil union, or similar domestic partnership under applicable law	☒ Legally-binding agreement evidencing that the non-occupying borrower or co-borrower has relinquished all rights to the property. ☒ Recorded quitclaim deed.
☐ Death of borrower or death of either the primary or secondary wage earner	☒ Death certificate.
☐ Distant employment transfer/relocation	☒ For active duty service members: Permanent Change of Station (PCS) orders or letter showing transfer. ☒ For employment transfers/new employment: A copy of the signed offer letter or notice from employer showing transfer to a new location or written explanation if employer documentation not applicable, AND ☒ Documentation that reflects the amount of any relocation assistance provided (not required for PCS orders).
☐ Other – hardship that is not covered above: _____ _____ _____	☒ A signed and dated written explanation describing the details of the hardship and any relevant documentation.

Income

Please enter all borrower and non-borrower contributor income amounts in middle column.

MONTHLY TOTAL APPLICANT INCOME TYPE	AMOUNT FOR ALL APPLICANTS	REQUIRED INCOME DOCUMENTATION
Gross (pre-tax) wages, salaries and overtime pay, commissions, tips, and bonuses	\$	■ Most-recent pay stub(s) and documentation of year-to-date earnings and deductions: ☐ Biweekly Pay: Three most-recent paystubs ☐ Weekly Pay: Five most-recent paystubs ☐ Semi-monthly Pay: Two most-recent paystubs ☐ Monthly Pay: most-recent paystub
Self-employment income	\$	■ Most-recent signed and dated quarterly or year-to-date profit/loss statement (business-related income and expenses only) AND ■ Three most-recent bank statements corresponding with the profit/loss statement income amounts AND ■ Most-recent complete and signed business tax return OR ■ Most-recent complete and signed individual federal income tax return
Unemployment benefit	\$	■ Unemployment award letter
Social Security or disability income, pension, death benefits, adoption assistance, housing allowance, and other public assistance	\$	■ Award letters or other documentation showing the amount and frequency of the benefits AND ■ Two most-recent bank statements showing deposit amounts AND ■ If received on behalf of a minor: Provide the date of birth for each minor (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____
Rental income (rents received, less expenses other than mortgage expense)	\$	■ Signed Lease Agreement and most-recent tax returns AND ■ Three most-recent bank statements demonstrating receipt of rent OR ■ Three most-recent deposited rent checks
Other sources of income not listed above (Note: Only include alimony, child support, or separate maintenance income if you choose to have it considered for repaying this loan)	\$	■ Other documentation showing the amount and frequency of the income (e.g., divorce decree, child support order) AND ■ Two most-recent bank statements showing receipt of income ■ Child Support income only: Provide the date of birth for each child (MM/DD/YYYY) - o DOB: _____ - o DOB: _____ - o DOB: _____

Borrower, Co-Borrower, and Non-Borrower Contributor Certification and Agreement

1. I certify and acknowledge that all of the information in this Loss Mitigation Application is truthful, and any hardship I identified contributed to the need for mortgage relief. Knowingly submitting false information may violate federal and other applicable law.
2. I agree to provide the servicer with all required documents, including any additional supporting documentation as requested, and will respond in a timely manner to all servicer or authorized third party* communications.
3. I acknowledge and agree that the servicer is not obligated to offer me assistance based solely on the representations in this document or other documentation submitted in connection with this request.
4. I consent to the servicer or authorized third party* obtaining a current credit report. Credit reports are required for borrowers, co-borrowers, and non-borrower contributors.
5. I consent to the disclosure by the servicer, authorized third party,* or any investor/guarantor of the mortgage loan(s), of any personal information collected during the mortgage assistance process and of any information about any relief I receive, to any third party that deals with the first lien or subordinate lien (if applicable) mortgage loan(s), including Fannie Mae, Freddie Mac, or any investor, insurer, guarantor, or servicer of the mortgage loan(s) or any companies that provide support services to them, for purposes permitted by applicable law. Personal information may include, but is not limited to: (a) name, address, telephone number, (b) Social Security number, (c) credit score, (d) income, and (e) payment history and information about account balances and activity.
6. I agree that the terms of this certification and agreement will apply to any modification trial period plan, repayment plan, or forbearance plan that may be offered based on this application. If I receive an offer for a modification trial period plan or repayment plan, I agree that the first timely payment under the plan will serve as acceptance of the plan.
7. I understand, acknowledge, and agree that the servicer and other loan participants can use and share tax return information for purposes of servicing a loan or as otherwise permitted by applicable laws, including state and federal privacy and data security laws. The servicer includes the servicer's affiliates, agents, service providers and any of aforementioned parties' successors and assigns. The other loan participants include any actual or potential owners of a loan resulting from the loan application, loss mitigation application, or acquirers of any beneficial or other interest in the loan, any mortgage insurer, guarantor, any servicers or service providers for these parties and any of aforementioned parties' successors and assigns.
8. I consent to being contacted concerning this application for mortgage assistance at any telephone number, including mobile telephone number, or email address I have provided to the lender, servicer, or authorized third party.*

* An authorized third party may include, but is not limited to, a housing counseling agency, Housing Finance Agency (HFA) or other similar entity that is assisting me in obtaining a foreclosure prevention alternative.

Borrower Signature: _____ Date: _____

Co-Borrower Signature: _____ Date: _____

Non-Borrower Contributor Signature: _____ Date: _____

Please submit your completed application, together with the required documentation, to **Flagstar Bank** via mail: **Loss Mitigation Department, W-110-2, 5151 Corporate Dr., Troy, MI 48098**, online: **flagstar.com/myloans** or fax: **(866) 234-9845**. We will contact you within five business days to acknowledge receipt and let you know if you need to send additional information or documents. Please include loan number on all pages submitted for review.

We will use the information you provided to help us identify the assistance you may be eligible to receive.

Loss Mitigation Application—Financial Breakdown

Please include all items you are currently responsible for, even if you are not current on those payments. Some expense information, such as credit cards and loans, will be obtained from credit reports.

How many people live in the household? (including yourself)	
---	--

INCOME	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Net Income from Employment	\$	\$	\$
Frequency of Pay Period			
Monthly Government Benefits & Insurance Income	\$	\$	\$
Monthly Unemployment Income	\$	\$	\$
Monthly Rental Income	\$	\$	\$
Monthly Alimony Income	\$	\$	\$
Monthly Child Support Income	\$	\$	\$
Monthly Net Income from Employment	\$	\$	\$
Other Monthly Income <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Income	\$	\$	\$

MONTHLY FAMILY EXPENSES (OUT OF POCKET)	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
Monthly Auto Maintenance/Gas	\$	\$	\$
Monthly Auto Insurance	\$	\$	\$
Monthly Food	\$	\$	\$
Monthly Medical/Dental (Out of Pocket Costs, Not Premiums)	\$	\$	\$
Monthly Alimony Paid	\$	\$	\$
Monthly Child Support Paid	\$	\$	\$
Monthly Child Care	\$	\$	\$
Monthly Entertainment	\$	\$	\$
Other Monthly Family Expenses <i>Please describe other below:</i>	\$	\$	\$
Total Monthly Family Expenses	\$	\$	\$

HOME EXPENSES: ALL RESIDENCES	BORROWER	CO-BORROWER	NON-BORROWER CONTRIBUTOR
1 st Lien Monthly Payment	\$	\$	\$
2 nd Lien Monthly Payment	\$	\$	\$
Monthly Rent Payment	\$	\$	\$
Monthly HOA Dues	\$	\$	\$
Monthly Property Taxes & Insurance (If Not Included in the Payment)	\$	\$	\$
Monthly Cable TV/Streaming	\$	\$	\$
Monthly Electricity	\$	\$	\$
Monthly Natural Gas	\$	\$	\$
Monthly Phone/Internet	\$	\$	\$
Monthly Sewer/Water	\$	\$	\$
Other Monthly Home Expenses <i>Please describe other below:</i>			
Total Primary Residence Expenses	\$	\$	\$

ASSETS	VALUE	AMOUNT OWED
Property 1	\$	\$
Property 2	\$	\$
401(k) Accounts	\$	\$
Checking Account(s) & Cash on Hand	\$	\$
Savings, Money Market, & CD Accounts	\$	\$
IRA/Keogh Accounts	\$	\$
Stocks/Bonds (Non-Retirement Accounts)	\$	\$
Other Real Estate	\$	\$
Other Assets <i>Please describe other below:</i>		

 Borrower Signature

 Date

 Co-Borrower Signature

 Date

 Non-Borrower Contributor Signature

 Date

Form **4506-C**
(September 2020)

IVES Request for Transcript of Tax Return

OMB Number
1545-1872

- ▶ Do not sign this form unless all applicable lines have been completed.
▶ Request may be rejected if the form is incomplete or illegible.
▶ For more information about Form 4506-C, visit www.irs.gov and search IVES.

1a. Name shown on tax return (if a joint return, enter the name shown first)	1b. First social security number on tax return, individual taxpayer identification number, or employer identification number (see instructions)
2a. If a joint return, enter spouse's name shown on tax return	2b. Second social security number or individual taxpayer identification number if joint tax return
3. Current name, address (including apt., room, or suite no.), city, state, and ZIP code (see instructions)	
4. Previous address shown on the last return filed if different from line 3 (see instructions)	
5a. IVES participant name, address, and SOR mailbox ID	
5b. Customer file number (if applicable) (see instructions)	
Caution: This tax transcript is being sent to the third party entered on Line 5a. Ensure that lines 5 through 8 are completed before signing. (see instructions)	
6. Transcript requested. Enter the tax form number here (1040, 1065, 1120, etc.) and check the appropriate box below. Enter only one tax form number per request	
a. Return Transcript , which includes most of the line items of a tax return as filed with the IRS. A tax return transcript does not reflect changes made to the account after the return is processed. Transcripts are only available for the following returns: Form 1040 series, Form 1065, Form 1120, Form 1120-A, Form 1120-H, Form 1120-L, and Form 1120S. Return transcripts are available for the current year and returns processed during the prior 3 processing years	
b. Account Transcript , which contains information on the financial status of the account, such as payments made on the account, penalty assessments, and adjustments made by you or the IRS after the return was filed. Return information is limited to items such as tax liability and estimated tax payments. Account transcripts are available for most returns	
c. Record of Account , which provides the most detailed information as it is a combination of the Return Transcript and the Account Transcript. Available for current year and 3 prior tax years	
7. Form W-2, Form 1099 series, Form 1098 series, or Form 5498 series transcript. The IRS can provide a transcript that includes data from these information returns. State or local information is not included with the Form W-2 information. The IRS may be able to provide this transcript information for up to 10 years. Information for the current year is generally not available until the year after it is filed with the IRS. For example, W-2 information for 2016, filed in 2017, will likely not be available from the IRS until 2018. If you need W-2 information for retirement purposes, you should contact the Social Security Administration at 1-800-772-1213	

Caution: If you need a copy of Form W-2 or Form 1099, you should first contact the payer. To get a copy of the Form W-2 or Form 1099 filed with your return, you must use Form 4506 and request a copy of your return, which includes all attachments.

8. Year or period requested. Enter the ending date of the tax year or period using the mm/dd/yyyy format (see instructions)

/ / / / / / / /

Caution: Do not sign this form unless all applicable lines have been completed.

Signature of taxpayer(s). I declare that I am either the taxpayer whose name is shown on line 1a or 2a, or a person authorized to obtain the tax information requested. If the request applies to a joint return, at least one spouse must sign. If signed by a corporate officer, 1 percent or more shareholder, partner, managing member, guardian, tax matters partner, executor, receiver, administrator, trustee, or party other than the taxpayer, I certify that I have the authority to execute Form 4506-C on behalf of the taxpayer. Note: This form must be received by IRS within 120 days of the signature date.

☐ Signatory attests that he/she has read the attestation clause and upon so reading declares that he/she has the authority to sign the Form 4506-C. See instructions.

Sign
Here

Signature (see instructions)	Date	Phone number of taxpayer on line 1a or 2a
Print/Type name		
Title (if line 1a above is a corporation, partnership, estate, or trust)		
Spouse's signature		Date
Print/Type name		

Instructions for Form 4506-C, IVES Request for Transcript of Tax Return

Section references are to the Internal Revenue Code unless otherwise noted.

Future Developments

For the latest information about Form 4506-C and its instructions, go to www.irs.gov and search IVES. Information about any recent developments affecting Form 4506-C (such as legislation enacted after we released it) will be posted on that page.

What's New. Form 4506-C was created to be utilized by authorized IVES participants to order tax transcripts with the consent of the taxpayer.

General Instructions

Caution: Do not sign this form unless all applicable lines have been completed.

Designated Recipient Notification. Internal Revenue Code, Section 6103(c), limits disclosure and use of return information received pursuant to the taxpayer's consent and holds the recipient subject to penalties for any unauthorized access, other use, or redisclosure without the taxpayer's express permission or request.

Taxpayer Notification. Internal Revenue Code, Section 6103(c), limits disclosure and use of return information provided pursuant to your consent and holds the recipient subject to penalties, brought by private right of action, for any unauthorized access, other use, or redisclosure without your express permission or request.

Purpose of form. Use Form 4506-C to request tax return information through an authorized IVES participant. You will designate an IVES participant to receive the information on line 5a.

Note: If you are unsure of which type of transcript you need, check with the party requesting your tax information.

Where to file. The IVES participant will fax Form 4506-C with the approved IVES cover sheet to their assigned Service Center.

Chart for ordering transcripts

If your assigned Service Center is:	Fax the requests with the approved coversheet to:
Austin Submission Processing Center	Austin IVES Team 844-249-6238
Fresno Submission Processing Center	Fresno IVES Team 844-249-6239
Kansas City Submission Processing Center	Kansas City IVES Team 844-249-8128
Ogden Submission Processing Center	Ogden IVES Team 844-249-8129

Specific Instructions

Line 1b. Enter the social security number (SSN) or individual taxpayer identification number (ITIN) for the individual listed on line 1a, or enter the employer identification number (EIN) for the business listed on line 1a.

Line 3. Enter your current address. If you use a P.O. box, include it on this line.

Line 4. Enter the address shown on the last return filed if different from the address entered on line 3.

Note: If the addresses on lines 3 and 4 are different and you have not changed your address with the IRS, file Form 8822, Change of Address, or Form 8822-B, Change of Address or Responsible Party — Business, with Form 4506-C.

Line 5b. Enter up to 10 numeric characters to create a unique customer file number that will appear on the transcript. The customer file number cannot contain an SSN, ITIN or EIN. Completion of this line is not required.

Note. If you use an SSN, name or combination of both, we will not input the information and the customer file number will reflect a generic entry of "999999999" on the transcript.

Line 8. Enter the end date of the tax year or period requested in mm/dd/yyyy format. This may be a calendar year, fiscal year or quarter. Enter each quarter requested for quarterly returns. Example: Enter 12/31/2018 for a calendar year 2018 Form 1040 transcript.

Signature and date. Form 4506-C must be signed and dated by the taxpayer listed on line 1a or 2a. The IRS must receive Form 4506-C within 120 days of the date signed by the taxpayer or it will be rejected. Ensure that all applicable lines, including lines 5a through 8, are completed before signing.



You must check the box in the signature area to acknowledge you have the authority to sign and request the information. The form will not be processed if unchecked.

Individuals. Transcripts listed on on line 6 may be furnished to either spouse if jointly filed. Only one signature is required. Sign Form 4506-C exactly as your name appeared on the original return. If you changed your name, also sign your current name.

Corporations. Generally, Form 4506-C can be signed by:

(1) an officer having legal authority to bind the corporation, (2) any person designated by the board of directors or other governing body, or (3) any officer or employee on written request by any principal officer and attested to by the secretary or other officer. A bona fide shareholder of record owning 1 percent or more of the outstanding stock of the corporation may submit a Form 4506-C but must provide documentation to support the requester's right to receive the information.



Loan Number: [REDACTED]

Complete and sign this Third Party Authorization form to authorize someone other than yourself to access your Flagstar Bank Mortgage Loan Account information. **IMPORTANT:** Once completed and signed, please mail or fax to:
Mail: Flagstar Bank | Third Party Authorization | E-115-3 | 5151 Corporate Drive | Troy, MI 48098 Fax: (888) 848-1071

Please PRINT

Section 1 - Your Contact and Mortgage Loan Account Information

First Name	Middle Name	Last Name
Last 4 Digits of Social Security Number		Best Phone Number

Section 2 - Authorized Third Party

Expiration date for authorization: ☐ Loan maturity or ☐ Input date: _____

(Note: If no date is selected, the authorization will be valid for two years from the date signed below)

Type of Authorization: ☐ Individual ☐ Company

Authorization Description: ☐ Realtor ☐ Attorney

☐ Appraiser ☐ Other: _____

Name (Please note: It is not necessary to list individual names for a company authorization)

Address	City	State	Zip
Best Phone Number	Fax	Email	

Section 3 - Your Authorization

The authorized third party can:

- Obtain loan details information by telephone
- Discuss payment arrangements with the Collections Department
- Discuss the Loss Mitigation application process
- Submit request to send documents that do not require a fee, such as a Transaction History Ledger, or an Original Appraisal. (can only be mailed to address of record)
- Submit request to re-send letter/package/document, such as a Monthly Statement, 1098, Escrow Analysis Disclosure, Rate/Payment, Change Notice, Loan Sale Transfer Notice, etc. (can only be mailed to address of record.)
- Request research to resolve matters

By signing this form, I authorize Flagstar Bank to provide loan information regarding the Mortgage Loan Account referenced above to the Authorized Party or to someone claiming to be the Authorized Party. I understand that this Third Party Authorization allows only for information to be provided by telephone and the actions described above. Flagstar may reject this or any other Third Party Authorization or refuse to recognize any request for information from the Authorized Party. This Third Party Authorization shall remain in effect until I revoke this authorization. I or any other borrower on this loan may revoke this Third Party Authorization at any time in writing via fax or mail.

In the event your loan is transferred to a new servicer, the authorization established by this form will no longer be effective. Our liability/obligations remain to the customer and the presence of a representative should not create additional direct or derivative liability for the Bank.

Borrower Signature	Date
Co-borrower Signature	Date

EXHIBIT L

Orlans*; OPCFC - First Legal Acceleration; N; N; None; OM; 25-014755; F; 12/01/2025

Jose Aquino
18 Brooks Road
Winchendon, MA 01475

ORLANS LAW GROUP PLLC

A law firm licensed in

DC, DE, FL, MA, MD, MI, NH, PA, RI, VA

PO Box 540540

Waltham, Massachusetts 02454

P (781) 790-7800 F (781) 790-7801

www.Orlans.com

Business Hours: 8:30 AM – 5:00 PM ET

FEDERAL LAW REQUIRES US TO ADVISE YOU THAT COMMUNICATION WITH OUR OFFICE COULD BE INTERPRETED AS AN ATTEMPT TO COLLECT A DEBT AND THAT ANY INFORMATION WILL BE USED FOR THAT PURPOSE.

IN THE EVENT YOU ARE SUBJECT TO AN AUTOMATIC STAY ISSUED BY A UNITED STATES BANKRUPTCY COURT OR THE REFERENCED DEBT HAS BEEN DISCHARGED IN BANKRUPTCY, THIS COMMUNICATION IS FOR INFORMATIONAL PURPOSES AND IS NOT INTENDED TO BE AN ATTEMPT TO COLLECT A DEBT.

IF YOU ARE NOW ON ACTIVE MILITARY DUTY OR HAVE BEEN IN THE PRIOR TWELVE MONTHS, OR IF YOU ARE A DEPENDENT OF AN ACTIVE SERVICEMEMBER, PLEASE CONTACT OUR OFFICE AS YOU MAY BE ENTITLED TO PROTECTIONS UNDER THE SERVICEMEMBERS CIVIL RELIEF ACT.

December 1, 2025

VIA FIRST CLASS MAIL

Jose Aquino
18 Brooks Road
Winchendon, MA 01475

RE: Our File Number: 25-014755

Property Address: 18 Brooks Road, Winchendon, MA 01475

Dear Jose Aquino:

This law firm has been retained by M&T Bank regarding the mortgage which encumbers the above real property (the "Mortgage"). The Note evidencing the loan in the original principal amount of \$248,613.00 and the Mortgage are collectively called the "Mortgage Loan."

An attorney has reviewed information provided by our client and has been involved in the preparation of this letter.

According to the records of our client, your Mortgage Loan is in default. **As a result, the Mortgage Loan has been accelerated and M&T Bank has referred the matter to our office for further action.**

You have the right to reinstate the Mortgage Loan by paying all past due installments, late charges, delinquent taxes, insurance premiums, and costs and fees incurred in the foreclosure. To request reinstatement information, contact our Loan Resolution Department at (781) 790-7800.

Very truly yours,
Orlans Law Group PLLC

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December 1, 2025

VIA FIRST CLASS MAIL

Jose Aquino

18 Brooks Road

Winchendon, MA 01475

RE: 18 Brooks Road, Winchendon, MA 01475

Orlans File No. 25-014755

Rights under Servicemembers Civil Relief Act

Dear Jose Aquino:

This letter is to inform you that if you are on active duty in the military or are a dependent of someone who is on active duty in military, you may be eligible for certain protections under the federal **Service Members Civil Relief Act (50 USC App. §§501-596) (SCRA)**. Those who may be entitled to such Legal Protection under the SCRA are:

Active duty members of the Army, Navy, Air Force, Marine Corps, Coast Guard, and active service National Guard; active service members of the commissioned corps of the National Oceanic and Atmospheric Administration; active service members of the commissioned corps of the Public Health Service; United States citizens servicing with the armed forces of a nation with which the United States is allied in the prosecution of a war or military action; and their spouses and/or dependents.

If you feel you may be eligible for such protections, you should contact both the servicer and Orlans Law Group PLLC immediately and forward a copy of the service member's military orders to:

Orlans Law Group PLLC

PO Box 540540

Waltham, MA 02454

Attn: SCRA

Phone (781) 790-7800

and

M&T Bank

1 Fountain Plaza

Buffalo, New York 14203

Phone: 800-724-2224

ATTN: Loss Mitigation

Sincerely,

Orlans Law Group PLLC

EXHIBIT M



Status Report Pursuant to Servicemembers Civil Relief Act

SSN: XXX-XX-3175
Birth Date:
Last Name: AQUINO
First Name: JOSE
Middle Name:
Status Ac Of: Dec-01-2025
Certificate ID: 8KHG4P9YX9P2C94

NA	NA	No	NA
This response is not applicable to the question.			

NA	NA	No	NA
This response is not applicable to the question.			

NA	NA	No	NA
This response is not applicable to the question.			

Upon searching the data banks of the Department of Defense Manpower Data Center, based on the information that you provided, the above is the status of the individual on the active duty status database of all branches of the United States Armed Forces (Army, Navy, Marine Corps, Air Force, Space Force, NOAA Fleet, Health and Coast Guard). This status includes information on a Servicemember or individual receiving notification of active orders to report for Active Duty.

The DoD strongly supports the enforcement of the Servicemembers Civil Relief Act (50 USC App. § 3901 et seq, as amended) (SCRA) (formerly known as the Soldiers' and Sailors' Civil Relief Act of 1940). DMDC has issued hundreds of thousands of "does not possess any information indicating that the individual is currently on active duty" responses, and has experienced only a small error rate. In the event the individual referenced above, or any family member, friend, or representative asserts in any manner that the individual was on active duty for the active duty status date, or is otherwise entitled to the protections of the SCRA, you are strongly encouraged to obtain further verification of the person's status by contacting that person's Service. Service contact information can be found on the SCRA website's FAQ page (Q35) via this URL: <https://scra.dmdc.osd.mil/scra/#/faqs>. If you have evidence the person was on active duty for the active duty status date and you fail to obtain this additional Service verification, punitive provisions of the SCRA may be invoked against you. See 50 USC App. § 3921(c).

This response reflects the following information: (1) The individual's Active Duty status on the Active Duty Status Date (2) Whether the individual left Active Duty status within 367 days preceding the Active Duty Status Date (3) Whether the individual or his/her unit received early notification to report for active duty on the Active Duty Status Date.

More information on "Active Duty Status"

Active duty status as reported in this certificate is defined in accordance with 10 USC § 101(d) (1). Prior to 2010 only some of the active duty periods less than 30 consecutive days in length were available. In the case of a member of the National Guard, this includes service under a call to active service authorized by the President or the Secretary of Defense under 32 USC § 502(f) for purposes of responding to a national emergency declared by the President and supported by Federal funds. All Active Guard Reserve (AGR) members must be assigned against an authorized mobilization position in the unit they support. This includes Navy Training and Administration of the Reserves (TARs), Marine Corps Active Reserve (ARs) and Coast Guard Reserve Program Administrator (RPAs). Active Duty status also applies to a Uniformed Service member who is an active duty commissioned officer of the U.S. Public Health Service or the National Oceanic and Atmospheric Administration (NOAA Commissioned Corps).

Coverage Under the SCRA is Broader in Some Cases

Coverage under the SCRA is broader in some cases and includes some categories of persons on active duty for purposes of the SCRA who would not be reported as on Active Duty under this certificate. SCRA protections are for Title 10 and Title 14 active duty records for all the Uniformed Services periods. Title 32 periods of Active Duty are not covered by SCRA, as defined in accordance with 10 USC § 101(d)(1).

Many times orders are amended to extend the period of active duty, which would extend SCRA protections. Persons seeking to rely on this website certification should check to make sure the orders on which SCRA protections are based have not been amended to extend the inclusive dates of service. Furthermore, some protections of the SCRA may extend to persons who have received orders to report for active duty or to be inducted, but who have not actually begun active duty or actually reported for induction. The Last Date on Active Duty entry is important because a number of protections of the SCRA extend beyond the last dates of active duty.

Those who could rely on this certificate are urged to seek qualified legal counsel to ensure that all rights guaranteed to Service members under the SCRA are protected

WARNING: This certificate was provided based on a last name, SSN/date of birth, and active duty status date provided by the requester. Providing erroneous information will cause an erroneous certificate to be provided.